RELIANCE RETAIL VENTURES LIMITED(FORMERLY RELIANCE COMMERCIAL ASSOCIATES
PRINCIPAL PLACE OF BUSINESS
RELIANCE INDUSTRIES LTD., 2ND FLOOR NO 62/2, RIL BUILDING, RICHMOND ROAD
Bangalore 560025
GSTIN: 29AADCR6715M1ZV

WORK ORDER

To	**Work Order No. : FG8/63603145**
3217765 NIHVA TECHNOLOGIES PVT LTD GP 72 SAMIR PLAZA MILKAT NO. 2151 GALA NO 06 CHINCHWAD PUNE PUNE MAHARASHTRA Pin Code: 411019 INDIA PHONE : 020-66304033 GST Status : Registered E-Mail : SALES@NIHVA.COM GST No. : 27AAECN0437H1ZM Attention : MR. VIJAY TARAK	**Date: 14.01.2021** Buyer: Meiyappan Phone: 022-44772530 Email: Makarand.Kulkarni@ril.com Contractor's Quot. Ref : Date : GSTN of Biller : 27AAECN0437H1ZM Bill From State: Maharashtra Bill From : 3217765

In accepting this WORK ORDER, CONTRACTOR agrees to furnish the GOODS/Do WORK specified in full accordance with all conditions set forth herein and / or attachments hereto. All drawings, designs, specifications and other data prepared by OWNER and related thereto are the property of the OWNER and must be returned to OWNER upon completion by CONTRACTOR of the obligations under this WORK ORDER. The information contained herein is not to be released or disclosed for any other use or purpose other than for the execution of this WORK ORDER.
It is important that CONTRACTOR signs and returns the Work Order copy within three (3) days of receipt.
No other form of Order acceptance will be accepted. Failure to return the Order acceptance does not diminish the responsibilities as set forth herein, but may result in delay to any payment(s) that may be due and may be the cause for termination of this WORK ORDER.

For all correspondence, Please quote Contract/Work Order No.
For detailed commercial terms & conditions, please refer line items terms/enclosures.

WO Period From DT: 01.07.2020
To DT:31.03.2021

Value of Work	INR	202,500.00
IGST	INR	36,450.00
Payable to Contractor	INR	238950.00

TOTAL ORDER VALUE: INR 238,950.00

Value in Words :(Rs. Two Lakh Thirty Eight Thousand Nine Hundred Fifty only)

For other details, please refer line items.

Delivery Terms : N/A At site
Engineer in Charge :

Payment Terms : See Page Inside

	for Reliance Retail Ventures Limited(Formerly Reliance Commercial	CONTRACTOR'S Acceptance
BUYER : Meiyappan	Authorised Signatory	**Signature Title Date**

WORK ORDER

W.O.Number FG8 / 63603145 Dt.14.01.2021

No	Item Code	Material/Work Description	HSN/SAC	Quantity	UOM	Price Details	Unit Rate		Amount (INR)
1		AMC SERVICE CHARGES FOR # DOCK LEVELLER	998719			Value of Work	8,910.00	INR/PU	8,910.00
						IGST	18.00	%	1,603.80

The item covers the following Work :

10	3346467	R&M AMC DOCK LEVELLER NIHVA	3	EA	- each	Net value of item	2,970.00	8,910.00

ANNUAL MAINTANENCE CONTRACT #MAKE : Nihva Technologies Pvt Ltd# DOCK LEVELLER#SOW-######Inspect Lip hinges for cracks and damage.###Inspect all deck supports for cracks and damage###Inspect rear hinges for cracks and damage.###Inspect pit area and curb steel for damage.###Check for the safety maintenance stopper###Check for missing or damaged dock bumpers mounted on dock face###Inspect lifting Platform hydraulic cylinder for damage and leakage# ###Inspect lifting Lip hydraulic cylinder for damage and leakage# ###Inspect for damaged or missing parts, bent parts, cracks# ###Operating push button are working properly# ###Check the leakage and operation of Power pack###Check the oil level

No	Item Code	Material/Work Description	HSN/SAC	Quantity	UOM	Price Details	Unit Rate		Amount (INR)
2		AMC SERVICE CHARGES FOR # DOCK LEVELLER	998719			Value of Work	8,910.00	INR/PU	8,910.00
						IGST	18.00	%	1,603.80

The item covers the following Work :

10	3346467	R&M AMC DOCK LEVELLER NIHVA	3	EA	- each	Net value of item	2,970.00	8,910.00

ANNUAL MAINTANENCE CONTRACT #MAKE : Nihva Technologies Pvt Ltd# DOCK LEVELLER#SOW-######Inspect Lip hinges for cracks and damage.###Inspect all deck supports for cracks and damage###Inspect rear hinges for cracks and damage.###Inspect pit area and curb steel for damage.###Check for the safety maintenance stopper###Check for missing or damaged dock bumpers mounted on dock face###Inspect lifting Platform hydraulic cylinder for damage and leakage# ###Inspect lifting Lip hydraulic cylinder for damage and leakage# ###Inspect for damaged or missing parts, bent parts, cracks# ###Operating push button are working properly# ###Check the leakage and operation

No	Item Code	Material/Work Description	HSN/SAC	Quantity	UOM	Price Details	Unit Rate		Amount (INR)
of Power pack###Check the oil level									
3		AMC SERVICE CHARGES FOR # SECTIONAL DOOR	998719			Value of Work	11,340.00	INR/PU	11,340.00
						IGST	18.00	%	2,041.20

The item covers the following Work :

10	3346518	R&M AMC CHARGES FOR SECTIONAL DOORS	3	EA	- each	Net value of item	3,780.00	11,340.00

ANNUAL MAINTANENCE CONTRACT #SECTIONAL DOOR#SOW-###Are the door panels free of any signs of fatigue, cracking or separation of materials?###inspection Are all hardware parts securely and appropriately###attached? With the door still in the closed position,###Does the door have a means of manually detaching the door operator###Warning labels Are all warning labels present?###Drum and rope Drum and rope is installed properly###Bottom rubber gasket Bottom rubber gasket is installed properly###Guide track ok Guide track are installed properly###Safety Photocell Does the safety sensor working properly###Safety Edge/ pneumatic###Check the bottom sensor is working properly###Wheels and Brackets Wheels and bracket are moving freely###Motor and Gear Motor and gear function are working properly###Limit Switch Does the limit switch work at required up and down position###Door operation Does the door move freely, without difficulty, and not open more quickly than force applied?

No	Item Code	Material/Work Description	HSN/SAC	Quantity	UOM	Price Details	Unit Rate		Amount (INR)
4		AMC SERVICE CHARGES FOR # SECTIONAL DOOR	998719			Value of Work	11,340.00	INR/PU	11,340.00
						IGST	18.00	%	2,041.20

The item covers the following Work :

10	3346518	R&M AMC CHARGES FOR SECTIONAL DOORS	3	EA	- each	Net value of item	3,780.00	11,340.00

ANNUAL MAINTANENCE CONTRACT #SECTIONAL DOOR#SOW-###Are the door panels free of any signs of fatigue, cracking or separation of materials?###inspection Are all hardware parts securely and appropriately###attached? With the door still in the closed position,###Does the door have a means of

No	Item Code	Material/Work Description	HSN/SAC	Quantity	UOM	Price Details	Unit Rate		Amount (INR)
		manually detaching the door operator###Warning labels Are all warning labels present?###Drum and rope Drum and rope is installed properly###Bottom rubber gasket Bottom rubber gasket is installed properly###Guide track ok Guide track are installed properly###Safety Photocell Does the safety sensor working properly###Safety Edge/ pneumatic###Check the bottom sensor is working properly###Wheels and Brackets Wheels and bracket are moving freely###Motor and Gear Motor and gear function are working properly###Limit Switch Does the limit switch work at required up and down position###Door operation Does the door move freely, without difficulty, and not open more quickly than force applied?							
5		AMC SERVICE CHARGES FOR # SECTIONAL DOOR	998719						
						Value of Work	11,340.00	INR/PU	11,340.00
						IGST	18.00	%	2,041.20

The item covers the following Work :

10	3346518	R&M AMC CHARGES FOR SECTIONAL DOORS		3	EA - each				
						Net value of item	3,780.00		11,340.00
		ANNUAL MAINTANENCE CONTRACT #SECTIONAL DOOR#SOW-###Are the door panels free of any signs of fatigue, cracking or separation of materials?###inspection Are all hardware parts securely and appropriately###attached? With the door still in the closed position,###Does the door have a means of manually detaching the door operator###Warning labels Are all warning labels present?###Drum and rope Drum and rope is installed properly###Bottom rubber gasket Bottom rubber gasket is installed properly###Guide track ok Guide track are installed properly###Safety Photocell Does the safety sensor working properly###Safety Edge/ pneumatic###Check the bottom sensor is working properly###Wheels and Brackets Wheels and bracket are moving freely###Motor and Gear Motor and gear function are working properly###Limit Switch Does the limit switch work at required up and down position###Door operation Does the door move freely, without difficulty, and not open more quickly than force applied?							

No	Item Code	Material/Work Description	HSN/SAC	Quantity	UOM	Price Details	Unit Rate		Amount (INR)
6		AMC SERVICE CHARGES FOR # SECTIONAL DOOR	998719						
						Value of Work	11,340.00	INR/PU	11,340.00
						IGST	18.00	%	2,041.20

The item covers the following Work :

10	3346518	R&M AMC CHARGES FOR SECTIONAL DOORS	3	EA	- each Net value of item	3,780.00		11,340.00

ANNUAL MAINTANENCE CONTRACT #SECTIONAL DOOR#SOW-###Are the door panels free of any signs of fatigue, cracking or separation of materials?###inspection Are all hardware parts securely and appropriately###attached? With the door still in the closed position,###Does the door have a means of manually detaching the door operator###Warning labels Are all warning labels present?###Drum and rope Drum and rope is installed properly###Bottom rubber gasket Bottom rubber gasket is installed properly###Guide track ok Guide track are installed properly###Safety Photocell Does the safety sensor working properly###Safety Edge/ pneumatic###Check the bottom sensor is working properly###Wheels and Brackets Wheels and bracket are moving freely###Motor and Gear Motor and gear function are working properly###Limit Switch Does the limit switch work at required up and down position###Door operation Does the door move freely, without difficulty, and not open more quickly than force applied?

No	Item Code	Material/Work Description	HSN/SAC	Quantity	UOM	Price Details	Unit Rate		Amount (INR)
7		AMC SERVICE CHARGES FOR # SECTIONAL DOOR	998719						
						Value of Work	11,340.00	INR/PU	11,340.00
						IGST	18.00	%	2,041.20

The item covers the following Work :

10	3346518	R&M AMC CHARGES FOR SECTIONAL DOORS	3	EA	- each Net value of item	3,780.00		11,340.00

ANNUAL MAINTANENCE CONTRACT #SECTIONAL DOOR#SOW-###Are the door panels free of any signs of fatigue, cracking or separation of materials?###inspection Are all hardware parts securely and appropriately###attached? With the door still in the closed position,###Does the door have a means of manually detaching the door operator###Warning labels Are all warning labels present?###Drum and rope Drum and rope

No	Item Code	Material/Work Description	HSN/SAC	Quantity	UOM	Price Details	Unit Rate		Amount (INR)
		is installed properly###Bottom rubber gasket Bottom rubber gasket is installed properly###Guide track ok Guide track are installed properly###Safety Photocell Does the safety sensor working properly###Safety Edge/ pneumatic###Check the bottom sensor is working properly###Wheels and Brackets Wheels and bracket are moving freely###Motor and Gear Motor and gear function are working properly###Limit Switch Does the limit switch work at required up and down position###Door operation Does the door move freely, without difficulty, and not open more quickly than force applied?							
8		AMC SERVICE CHARGES FOR # SECTIONAL DOOR	998719			Value of Work IGST	11,340.00 18.00	INR/PU %	11,340.00 2,041.20

The item covers the following Work :

10	3346518	R&M AMC CHARGES FOR SECTIONAL DOORS		3 EA	-	each Net value of item	3,780.00		11,340.00
		ANNUAL MAINTANENCE CONTRACT #SECTIONAL DOOR#SOW-###Are the door panels free of any signs of fatigue, cracking or separation of materials?###inspection Are all hardware parts securely and appropriately###attached? With the door still in the closed position,###Does the door have a means of manually detaching the door operator###Warning labels Are all warning labels present?###Drum and rope Drum and rope is installed properly###Bottom rubber gasket Bottom rubber gasket is installed properly###Guide track ok Guide track are installed properly###Safety Photocell Does the safety sensor working properly###Safety Edge/ pneumatic###Check the bottom sensor is working properly###Wheels and Brackets Wheels and bracket are moving freely###Motor and Gear Motor and gear function are working properly###Limit Switch Does the limit switch work at required up and down position###Door operation Does the door move freely, without difficulty, and not open more quickly than force applied?							

No	Item Code	Material/Work Description	HSN/SAC	Quantity	UOM	Price Details	Unit Rate		Amount (INR)
9		AMC SERVICE CHARGES FOR # SECTIONAL DOOR	998719						
						Value of Work	11,340.00	INR/PU	11,340.00
						IGST	18.00	%	2,041.20

The item covers the following Work :

10	3346518	R&M AMC CHARGES FOR SECTIONAL DOORS	3	EA	- each			
						Net value of item	3,780.00	11,340.00

ANNUAL MAINTANENCE CONTRACT #SECTIONAL DOOR#SOW-###Are the door panels free of any signs of fatigue, cracking or separation of materials?###inspection Are all hardware parts securely and appropriately###attached? With the door still in the closed position,###Does the door have a means of manually detaching the door operator###Warning labels Are all warning labels present?###Drum and rope Drum and rope is installed properly###Bottom rubber gasket Bottom rubber gasket is installed properly###Guide track ok Guide track are installed properly###Safety Photocell Does the safety sensor working properly###Safety Edge/ pneumatic###Check the bottom sensor is working properly###Wheels and Brackets Wheels and bracket are moving freely###Motor and Gear Motor and gear function are working properly###Limit Switch Does the limit switch work at required up and down position###Door operation Does the door move freely, without difficulty, and not open more quickly than force applied?

No	Item Code	Material/Work Description	HSN/SAC	Quantity	UOM	Price Details	Unit Rate		Amount (INR)
10		AMC SERVICE CHARGES FOR # SECTIONAL DOOR	998719						
						Value of Work	11,340.00	INR/PU	11,340.00
						IGST	18.00	%	2,041.20

The item covers the following Work :

10	3346518	R&M AMC CHARGES FOR SECTIONAL DOORS	3	EA	- each			
						Net value of item	3,780.00	11,340.00

ANNUAL MAINTANENCE CONTRACT #SECTIONAL DOOR#SOW-###Are the door panels free of any signs of fatigue, cracking or separation of materials?###inspection Are all hardware parts securely and appropriately###attached? With the door still in the closed position,###Does the door have a means of manually detaching the door operator###Warning labels Are all warning labels present?###Drum and rope Drum and rope

No	Item Code	Material/Work Description	HSN/SAC	Quantity	UOM	Price Details	Unit Rate		Amount (INR)
		is installed properly###Bottom rubber gasket Bottom rubber gasket is installed properly###Guide track ok Guide track are installed properly###Safety Photocell Does the safety sensor working properly###Safety Edge/ pneumatic###Check the bottom sensor is working properly###Wheels and Brackets Wheels and bracket are moving freely###Motor and Gear Motor and gear function are working properly###Limit Switch Does the limit switch work at required up and down position###Door operation Does the door move freely, without difficulty, and not open more quickly than force applied?							
11		AMC SERVICE CHARGES FOR # SECTIONAL DOOR	998719			Value of Work IGST	11,340.00 18.00	INR/PU %	11,340.00 2,041.20

The item covers the following Work :

10	3346518	R&M AMC CHARGES FOR SECTIONAL DOORS		3 EA	-	each Net value of item	3,780.00		11,340.00
		ANNUAL MAINTANENCE CONTRACT #SECTIONAL DOOR#SOW-###Are the door panels free of any signs of fatigue, cracking or separation of materials?###inspection Are all hardware parts securely and appropriately###attached? With the door still in the closed position,###Does the door have a means of manually detaching the door operator###Warning labels Are all warning labels present?###Drum and rope Drum and rope is installed properly###Bottom rubber gasket Bottom rubber gasket is installed properly###Guide track ok Guide track are installed properly###Safety Photocell Does the safety sensor working properly###Safety Edge/ pneumatic###Check the bottom sensor is working properly###Wheels and Brackets Wheels and bracket are moving freely###Motor and Gear Motor and gear function are working properly###Limit Switch Does the limit switch work at required up and down position###Door operation Does the door move freely, without difficulty, and not open more quickly than force applied?							

No	Item Code	Material/Work Description	HSN/SAC	Quantity	UOM	Price Details	Unit Rate		Amount (INR)
12		AMC SERVICE CHARGES FOR # DOCK LEVELLER	998719						
						Value of Work	8,910.00	INR/PU	8,910.00
						IGST	18.00	%	1,603.80

The item covers the following Work :

10	3346467	R&M AMC DOCK LEVELLER NIHVA	3	EA	- each				
						Net value of item	2,970.00		8,910.00

ANNUAL MAINTANENCE CONTRACT #MAKE : Nihva Technologies Pvt Ltd# DOCK LEVELLER#SOW-######Inspect Lip hinges for cracks and damage.###Inspect all deck supports for cracks and damage###Inspect rear hinges for cracks and damage.###Inspect pit area and curb steel for damage.###Check for the safety maintenance stopper###Check for missing or damaged dock bumpers mounted on dock face###Inspect lifting Platform hydraulic cylinder for damage and leakage# ###Inspect lifting Lip hydraulic cylinder for damage and leakage# ###Inspect for damaged or missing parts, bent parts, cracks# ###Operating push button are working properly# ###Check the leakage and operation of Power pack###Check the oil level

No	Item Code	Material/Work Description	HSN/SAC	Quantity	UOM	Price Details	Unit Rate		Amount (INR)
13		AMC SERVICE CHARGES FOR # SECTIONAL DOOR	998719						
						Value of Work	11,340.00	INR/PU	11,340.00
						IGST	18.00	%	2,041.20

The item covers the following Work :

10	3346518	R&M AMC CHARGES FOR SECTIONAL DOORS	3	EA	- each				
						Net value of item	3,780.00		11,340.00

ANNUAL MAINTANENCE CONTRACT #SECTIONAL DOOR#SOW-###Are the door panels free of any signs of fatigue, cracking or separation of materials?###inspection Are all hardware parts securely and appropriately###attached? With the door still in the closed position,###Does the door have a means of manually detaching the door operator###Warning labels Are all warning labels present?###Drum and rope Drum and rope is installed properly###Bottom rubber gasket Bottom rubber gasket is installed properly###Guide track ok Guide track are installed properly###Safety Photocell Does the safety sensor working properly###Safety Edge/ pneumatic###Check the bottom sensor is working properly###Wheels and Brackets Wheels

No	Item Code	Material/Work Description	HSN/SAC	Quantity	UOM	Price Details	Unit Rate		Amount (INR)
		and bracket are moving freely###Motor and Gear Motor and gear function are working properly###Limit Switch Does the limit switch work at required up and down position###Door operation Does the door move freely, without difficulty, and not open more quickly than force applied?							
14		AMC SERVICE CHARGES FOR # DOCK LEVELLER	998719			Value of Work IGST	8,910.00 18.00	INR/PU %	8,910.00 1,603.80

The item covers the following Work :

10	3346467	R&M AMC DOCK LEVELLER NIHVA		3	EA	- each Net value of item	2,970.00		8,910.00
		ANNUAL MAINTANENCE CONTRACT #MAKE : Nihva Technologies Pvt Ltd# DOCK LEVELLER#SOW-######Inspect Lip hinges for cracks and damage.###Inspect all deck supports for cracks and damage###Inspect rear hinges for cracks and damage.###Inspect pit area and curb steel for damage.###Check for the safety maintenance stopper###Check for missing or damaged dock bumpers mounted on dock face###Inspect lifting Platform hydraulic cylinder for damage and leakage# ###Inspect lifting Lip hydraulic cylinder for damage and leakage# ###Inspect for damaged or missing parts, bent parts, cracks# ###Operating push button are working properly# ###Check the leakage and operation of Power pack###Check the oil level							

15		AMC SERVICE CHARGES FOR # DOCK LEVELLER	998719			Value of Work IGST	8,910.00 18.00	INR/PU %	8,910.00 1,603.80

The item covers the following Work :

10	3346467	R&M AMC DOCK LEVELLER NIHVA		3	EA	- each Net value of item	2,970.00		8,910.00
		ANNUAL MAINTANENCE CONTRACT #MAKE : Nihva Technologies Pvt Ltd# DOCK LEVELLER#SOW-######Inspect Lip hinges for cracks and damage.###Inspect all deck supports for cracks and damage###Inspect rear hinges for cracks and damage.###Inspect pit area and curb steel for damage.###Check for the safety maintenance stopper###Check for							

No	Item Code	Material/Work Description	HSN/SAC	Quantity	UOM	Price Details	Unit Rate		Amount (INR)
		missing or damaged dock bumpers mounted on dock face###Inspect lifting Platform hydraulic cylinder for damage and leakage# ###Inspect lifting Lip hydraulic cylinder for damage and leakage# ###Inspect for damaged or missing parts, bent parts, cracks# ###Operating push button are working properly# ###Check the leakage and operation of Power pack###Check the oil level							
16		AMC SERVICE CHARGES FOR # DOCK LEVELLER	998719			Value of Work IGST	8,910.00 18.00	INR/PU %	8,910.00 1,603.80

The item covers the following Work :

10	3346467	R&M AMC DOCK LEVELLER NIHVA		3	EA - each	Net value of item	2,970.00		8,910.00
		ANNUAL MAINTANENCE CONTRACT #MAKE : Nihva Technologies Pvt Ltd# DOCK LEVELLER#SOW-######Inspect Lip hinges for cracks and damage.###Inspect all deck supports for cracks and damage###Inspect rear hinges for cracks and damage.###Inspect pit area and curb steel for damage.###Check for the safety maintenance stopper###Check for missing or damaged dock bumpers mounted on dock face###Inspect lifting Platform hydraulic cylinder for damage and leakage# ###Inspect lifting Lip hydraulic cylinder for damage and leakage# ###Inspect for damaged or missing parts, bent parts, cracks# ###Operating push button are working properly# ###Check the leakage and operation of Power pack###Check the oil level							

17		AMC SERVICE CHARGES FOR # DOCK LEVELLER	998719			Value of Work IGST	8,910.00 18.00	INR/PU %	8,910.00 1,603.80

The item covers the following Work :

10	3346467	R&M AMC DOCK LEVELLER NIHVA		3	EA - each	Net value of item	2,970.00		8,910.00
		ANNUAL MAINTANENCE CONTRACT #MAKE : Nihva Technologies Pvt Ltd# DOCK LEVELLER#SOW-######Inspect Lip hinges for cracks and damage.###Inspect all deck supports for cracks and damage###Inspect rear hinges for cracks and damage.###Inspect pit							

No	Item Code	Material/Work Description	HSN/SAC	Quantity	UOM	Price Details	Unit Rate		Amount (INR)
		area and curb steel for damage.###Check for the safety maintenance stopper###Check for missing or damaged dock bumpers mounted on dock face###Inspect lifting Platform hydraulic cylinder for damage and leakage# ###Inspect lifting Lip hydraulic cylinder for damage and leakage# ###Inspect for damaged or missing parts, bent parts, cracks# ###Operating push button are working properly# ###Check the leakage and operation of Power pack###Check the oil level							
18		AMC SERVICE CHARGES FOR # DOCK LEVELLER	998719			Value of Work IGST	8,910.00 18.00	INR/PU %	8,910.00 1,603.80

The item covers the following Work :

10	3346467	R&M AMC DOCK LEVELLER NIHVA		3	EA	- each Net value of item	2,970.00		8,910.00
		ANNUAL MAINTANENCE CONTRACT #MAKE : Nihva Technologies Pvt Ltd# DOCK LEVELLER#SOW-######Inspect Lip hinges for cracks and damage.###Inspect all deck supports for cracks and damage###Inspect rear hinges for cracks and damage.###Inspect pit area and curb steel for damage.###Check for the safety maintenance stopper###Check for missing or damaged dock bumpers mounted on dock face###Inspect lifting Platform hydraulic cylinder for damage and leakage# ###Inspect lifting Lip hydraulic cylinder for damage and leakage# ###Inspect for damaged or missing parts, bent parts, cracks# ###Operating push button are working properly# ###Check the leakage and operation of Power pack###Check the oil level							

19		AMC SERVICE CHARGES FOR # DOCK LEVELLER	998719			Value of Work IGST	8,910.00 18.00	INR/PU %	8,910.00 1,603.80

The item covers the following Work :

10	3346467	R&M AMC DOCK LEVELLER NIHVA		3	EA	- each Net value of item	2,970.00		8,910.00
		ANNUAL MAINTANENCE CONTRACT #MAKE : Nihva Technologies Pvt Ltd# DOCK LEVELLER#SOW-######Inspect Lip hinges for cracks and damage.###Inspect all deck							

No	Item Code	Material/Work Description	HSN/SAC	Quantity	UOM	Price Details	Unit Rate		Amount (INR)
		supports for cracks and damage###Inspect rear hinges for cracks and damage.###Inspect pit area and curb steel for damage.###Check for the safety maintenance stopper###Check for missing or damaged dock bumpers mounted on dock face###Inspect lifting Platform hydraulic cylinder for damage and leakage# ###Inspect lifting Lip hydraulic cylinder for damage and leakage# ###Inspect for damaged or missing parts, bent parts, cracks# ###Operating push button are working properly# ###Check the leakage and operation of Power pack###Check the oil level							
20		AMC SERVICE CHARGES FOR # DOCK LEVELLER	998719			Value of Work	8,910.00	INR/PU	8,910.00
						IGST	18.00	%	1,603.80

The item covers the following Work :

10	3346467	R&M AMC DOCK LEVELLER NIHVA		3	EA	- each			
						Net value of item	2,970.00		8,910.00
		ANNUAL MAINTANENCE CONTRACT #MAKE : Nihva Technologies Pvt Ltd# DOCK LEVELLER#SOW-######Inspect Lip hinges for cracks and damage.###Inspect all deck supports for cracks and damage###Inspect rear hinges for cracks and damage.###Inspect pit area and curb steel for damage.###Check for the safety maintenance stopper###Check for missing or damaged dock bumpers mounted on dock face###Inspect lifting Platform hydraulic cylinder for damage and leakage# ###Inspect lifting Lip hydraulic cylinder for damage and leakage# ###Inspect for damaged or missing parts, bent parts, cracks# ###Operating push button are working properly# ###Check the leakage and operation of Power pack###Check the oil level							

Total Value of Work	**INR**	**202,500.00**
Total IGST	**INR**	**36,450.00**
Total Payable to Contractor	**INR**	**238,950.00**

Total Order Value: INR 238,950.00

Terms of payment :
Pro-rata payment(s) shall be made within 30 days from the date of receipt of GOODS, subject to receipt of correct Invoice and Despatch documents, at our end within 10 days of supply.

Penalty for breach of contract :
LD - LD00 NOT APPLICABLE
RETENTION - RT00 NOT APPLICABLE

Note(S): 1. It is essential that the Contractor shall mention ItemNo. & Item code along with corresponding Material/Work Description and W.O.No. as mentioned above, in the Delivery challan (On-Shore Order), Measurement sheet and invoice for ease of material Inwarding, Certification of work and Bill Processing. Failure to do so may be the grounds for the rejections(s) or delay in release of payment(s).

PAN No. : AADCR6715M

#As per recent amendment(s) in the Income-Tax Rules ("Rules") made vide the Income-tax (22nd Amendment) Rules, 2015, effective 1 January 2016. Rule 114B of the Rules as substituted, mentions transactions in relationto which Permanent Account Number (PAN) is to be quoted on all documentsand includes sale or purchase of goods or services of any nature for an amount exceeding two lakh rupees per transaction (Sl. No 18 of the Tablein Rule 114B).

#Rule 114C (2) of the Rules as substituted reads as follows: "Any person, being a person raising bills referred to at Sl. No 5 or 6 or 18 of rule 114B, who, in relation to a transaction specified in the said Sl. No., has issued any document shall ensure after verification that permanent account number has been correctly furnished and the same shallbe mentioned in such document, or as the case may be, a declaration in Form 60 has been duly furnished with complete particulars". In case PAN is applied for and / or not available, Form 60 is to be duly filled and signed / verified and submitted with identity and address proof (KYC documents) as per the page 3 of form 60.

#You are therefore requested that your invoice / bill / payment acknowledgement / debit note / credit note, etc. should mention PAN of your entity as well as our PAN.

2. Contractor represents that he/they is/are Individual / Partnership Firm / HUF/ AOP / Body Corporate
Accordingly, Service Tax in respect of this work order should be payable to Central Government, as given hereunder:
By Owner By Contractor

ANNEXURE FOR SITE DETAILS

Site	Site Name	Site Address	Site GSTIN No.
A0NC	RRL Trends Tumkur NDC	Tumkur Survey No 54 / 1 Nandihalli Village 55th KM Stone NH 4 Tumkur Road Tumkur Karnataka - 572101	29AADCR6715M1ZV

Special Terms & conditions of Work Order/Contract (Revised)

1.0 PREAMBLE.

The Owner shall mean "Reliance", their successors and assigns, from time to time. It shall also encompass such terms as Reliance, Purchaser, Buyer or Owner as used in documents referenced herein or attached hereto.

The following are the Special Conditions of Contract (SCC) applicable to this contract which shall be read in conjunction with the General Conditions of Contract (GCC), Specifications, drawings and/or any other document forming part of the contract. In respect of terms & conditions, not explicitly provided in this Special Terms & Conditions, provisions of General Conditions of contract are applicable. In the documents that follow wherever Contract is mentioned it shall also mean Work Order and vice-versa.

2.0 GENERAL

If the quality of job carried out is not satisfying the standards and specifications as stipulated in the contract, then the Engineer in charge shall notify the contractor of the defective work with a notice period of 7 days. In case, if the Contractor fails to rectify the defective works within this notice period, then the Owner will get the same work done by employing any other contractor and the charges paid to other agency will be recovered from the contractor's bill.

The contractor shall work as per the instructions & priorities given by the Engineer-in-Charge.

Execution of the job includes execution of all preceding and connected jobs.

The contractor will enter into secrecy agreement with the OWNER with respect to all drawings, design documents / information that they may come across during the course of execution of the job. The contractor should comply with all applicable laws including labour laws, regulations, ordinances etc of the state / province pertaining to the work.

No photos shall be taken without prior permission of site in charge.

3.0 SCOPE OF WORK:-

Specific - The scope of work is as mentioned in the WO .The work shall be carried out in accordance with applicable codes and practices.

General - Please refer General Conditions of the Contract (GCC).

4.0 OWNER'S SCOPE:-

4.1 Issue of necessary work permit/s for carrying out the job.

4.2 Providing Job & material specifications, Drawings etc.

4.3 To make available the material as required for the execution of the job, agreed to be arranged by the owner either at the site location or transfer from the owner's ware house to the site. In case materials issued at ware house, loading will be done by the Owner & unloading at site shall be done by contractor. In case materials issued at the site of work, unloading has to be arranged by the contractor. Unloading costs are included as a part of overall rates and will not be

paid separately unless agreed upon in writing with EIC.

4.4 Verify at any time the quality and safety norms given to the CONTRACTOR and ensure strict compliances

4.5 The water & power shall be provided by the Owner to the Contractor at no extra cost at a single point. The contractor shall make his own necessary arrangements to take it further for the appropriate execution of works. The rates agreed to and issued in the W.O. are including all the arrangements made by the contractor in this regard.

5.0 CONTRACTOR'S SCOPE:-

5.1 Attending job as per Schedule of Rates.

5.2 Contractor shall make himself fully conversant with the locations and the type of job to be carried out therein so that he clearly understands the scope of work and assesses the requirement of the resources required to complete the work in the scheduled time. He shall contact the respective Engineer-in-charge for this purpose.

5.3 To carry out the jobs in a manner as per the instructions & priorities of the Engineer- in - charge. Job to be performed at all heights and locations. Scaffolding if required for doing the job is included in the rate for the specified heights. Only stable properly designed steel scaffolding to be used.

5.4 The Contractor shall prepare a detailed execution plan for execution of jobs and get the same approved by Engineer-in-charge. Further to this detailed approved plan, the contractor shall submit progress report at specified intervals and shall be responsible to ensure the specified progress as per committed plan.

5.5 To take due care of items while handling and shall be liable for recovery for the loss / damage occurred due to mishandling.

5.6 All Materials and consumables required for completion of job

5.7 Disposal of surplus unusable materials generated during the work execution out of the project site premises, by following the local authorities stipulations.

5.8 The Contractor to comply & submit Certificate/Documentary evidence for P.F. deposition of earlier month along with the bill/invoice of the subsequent month for the certification of the bill strictly as per the format given along with this WO.

5.9 The contractor shall disburse wages to his workers and shall take his signature with the date and time on each page of the wage sheet and shall provide a copy of such certified wage sheet for the previous month to the authorized representative of the Owner for their records.

5.10 Jobs done by contractor shall be inspected by the Owner as per Instructions of Engineer-In-Charge. If any non-conformance is observed, the contractor will attend/ rectify/ repair the same free of cost.

5.11 Mobilize sufficient resources including all hand tools / equipment as required for the job based on the target date of completion. All the lifting tools & tackles / measuring instruments used by the contractor shall be duly tested & certified by the authorized agency. Contractors to give list of equipment, plant & machinery, proposed for this project along with the quote/offer.

5.12 Materials installed shall be strictly as per specifications which shall include those specified in BOQ as well as those shown in respective drawings..

5.13 All other jobs covered in the Work Order/Contract/scope of work and further those works

which will be added/deleted during the execution phase of the work.

5.14 Insurance of contractor's employees, tools & tackles, equipment & materials at site apart from Third party insurance. Contractor to follow all safety norms as per present HSE norms indicated in the GCC/SCC and as per revised HSE norms issued from time to time as indicated in this WO.

5.15 The Contractor to provide safety appliances like dust masks, safety belt, ladder, safety shoes, helmet, hand gloves, safety goggles, PPE, rain gears, Overalls etc. to their personnel working inside the designated work premises at his cost and should adhere to safety codes as per construction norms and safe working practices and further given in the GCC contract.
The Contractor to maintain proper record of his tools & tackles, equipment, machinery and any other items with proper gate entry. The Contractor shall provide access to the Engineer In charge for its inspection on as and when required basis for all the materials, auxiliary equipment and consumable required for executing the job including operation of auxiliary equipment, binding wires for reinforcement work. Making cover block is also the responsibility of the contractor. All shuttering material, scaffolding required for shuttering, shuttering nails, oil, nut and bold etc. shall be arranged by the contractor.

The Contractor to arrange for internal transportation of his manpower within the Site by proper means of conveyance. If the contractor deploys vehicle for internal transfer of manpower and materials, the vehicle deployed should meet statutory requirements.

5.16 Dewatering based on soil report parameters and other than well point dewatering (if any) using contractors pump for the excavation work done by contractor. No extra payment for this will be made and is included in Excavation work. Disposal as per statutory requirements of the local authorities of all

debris after completion of work is considered in the agreed rates.

5.17 The Contractor to make his own arrangement for accommodation away from site premises, transport to & fro for his staff and labours/workmen and is considered in the agreed rates. The Contractor shall also make his own arrangement for food & other necessities for his workman and staff. No separate payment on this account is admissible on this account

5.18 The Contractor shall return to the Owner surplus material (supplied by the Owner) to the EIC at site premises and any loading for return of materials shall be carried out by the contractor, the same is factored in the agreed rates.

5.19 Ensuring proper safety, quality and compliance of environmental norms to the satisfaction of the authority.

5.20 Contractor would deploy sub-Contractors, specialist Contractors, material suppliers etc., for the work who are reputed in their field of expertise and has similar experience of having successfully completed such works. Approval by the OWNER on critical functionary of outsourced services by the Contractor like Subcontractors for fabrication ,SFRC works, concrete works, Water proofing works, Painting works, False ceiling works steel vendors, cable vendor, etc., is mandatory. These critical functions shall be mutually agreed in writing with EIC and his Authorized representative QC head & Project Management Head before deploying such resources in works. Approval by EIC and other personals of the Owner does not absolve the overall responsibility of the contractor to deliver the end product, as per laid out specifications and quality standard as called for.

6.0 DURATION OF CONTRACT:-
Duration of Contract is as given on the first page of the work order. The period of contract given includes

the time required for testing rectification if any in all respect and to the entire satisfaction of Engineer in charge.

7.0 DELIVERY/COMPLETION SCHEDULE:-

7.1 The Overall Contractual delivery/completion schedule for the Goods/Services covered under this Work Order shall be executed as per instructions issued from time to time. Execution of job includes execution of all preceding and connected jobs.

7.2 Entire work under this contract shall be completed as per the dates mentioned in the work order. Contractor shall submit schedule (bar chart) for the work with details of all resources planned to deploy. It will be contractor's responsibility to deploy adequate resources (Labour, Material, equipment, etc) for timely completion of the work.

7.3 In the event of delay due to factors attributable to the contractor OR a need for expediting the project to meet the overall project timelines, the contractor shall increase the resources to make up for the unfinished work and shall work during extended hours or round the clock without any extra cost to the owner.

8.0 ADEQUACY OF CONTRACTOR'S RESOURCES:-

The Contractor shall provide adequate resources to ensure timely completion of each milestone of the construction schedule approved by the Engineer-In-Charge.

9.0 SUFFICIENCY OF OFFER:-

It is expressly understood that your representatives have visited the site(s) of work and have acquainted yourself to the conditions thereof. It is also expressly understood that you have taken into account all factors for completing the works and in all

respects while fixing your rates for different items. If any work is required to be carried out to complete the works described in the schedule of works but not expressly mentioned therein you will be deemed to have taken cost of such works into account in your pricing and nothing extra would become payable to you.

9.1 Correctness of the BOQ / Work Order

On issuance of LOA (Letter of Award) / Work order, the contractor shall ensure the correctness of the BOQ received by him by cross verifying the same (BoQ) by a joint site visit with the Owner's Project engineer within 03 days of work award. This joint visit at site shall be conducted along-with the Owner's nominated representative/EIC to ratify the correctness of items vis-à-vis quantities as issued along with LoA. Any missing item and/or superfluous item shall also be identified.

Contractor shall notify in writing variations (discrepancies) if observed w.r.t. BOQ as issued along with LOA /WO to the EIC and contracts Lead. Even if there are no observed variations contractor shall communicate "we have studied the BOQ and visited the site and found that there are no major variations to the one provided in our LOA/WO".
The same shall also be confirmed by the Owner's Project Engineer/EIC to the Contracts Team.
On receipt of the aforesaid confirmation, formal WO/WO amendment shall be issued within 07 working days, however contractor shall ensure work shall continue at site.

10.0 OTHER CONTRACTORS & AGENCIES:-
Contractor shall co-operate with the Owner's other contractors / vendors / agencies executing work at the site.

11.0 MOBILISATION TIME:-
Contractor shall mobilize agreed resources to the site

as stated in WO. No mobilization Advance/Demobilization charges will be paid.

12.0 MODE OF MEASUREMENTS:-

12.1 Measurement of work will be made on UOM (unit of measurement) mentioned in the BoQ of the W.O. and as per the specifications. In case specific method of measurement is not mentioned anywhere in the documents/drawings, the method of measurement shall be as per IS 1200.

12.2 The contractor shall ensure that the measurements for all works that may be partially or wholly hidden in course of construction are duly recorded jointly with owner's representative before the portion of the work becomes inaccessible for measurements.

12.3 All measurement, methods of measurement, meaning and intent of specifications and interpretation of special conditions of contract given and made by EIC shall be
final and binding on the contractor.

12.4 The payment for any completed work shall be on the basis of the joint measurements as certified by the Engineer in charge. For any dispute in the mode of measurements, mode of measurement as per the latest Indian Standard Specifications shall be referred.

12.5 For all matters pertaining to the work including certification of measurements, approval of materials and approval of works and shop drawings, the owner shall nominate his representative in writing to the contractor. In absence of such nomination by the owner, the authority for certification/approval of all the matters pertaining to this work shall rest only with the owner.

13.0 RATES & TAXES:-

13.1 Quantities indicated in the BOQ are tentative and may vary to any extent on either side for which no extra compensation will be made. Payment will be made for the actual quantity of work executed. Item rates shall remain firm and valid regardless of any variation in quantities (including deletion of items) of any of the work item as aforesaid.

13.2 The item rates given in BOQ shall be deemed to be inclusive of -
a) Cost of carrying out test as are required to validate/verify design calculations and other performance parameters specified under this contract.

b) Cost of any overtime, extra incentives and night work is therefore deemed to be included in the said item rates.

c) Rates are firm for the various items covered in this WO and quantity variation and deletion of a particular WO item shall not entitle to any revision in the contract price of any item or any compensation

d) Rates shall also include for reworking resources based on the owner's requirement, augmentation of resources at short notice as well.

14.0 TERMS OF PAYMENT:-

14.1 Quantity & Rate
The payment will be made as per actual quantity of the work carried out as per working drawings and jointly measured and certified by our Site Engineer / Project In charge. Wastages will not be paid separately and the rate is inclusive of all wastages as illustrated in clause 21.11

Payment shall be made through E-Payment/RTGS Mode only. It is clearly understood and agreed that the design of the entire works will be carried out in phases as the bill of quantities which is appended to annexure will undergo changes and rates shall remain firm. Basic

price shown in BOQ includes all taxes, transportation, wastages, FOR at site except for the GST which will be paid as applicable

14.2 Certification & Payment

The Contractor shall periodically (and not more than a month's gap) submit Running Account (RA) Bill consecutively numbered and in the format provided by the Owner, in triplicate, to the Engineer-in-Charge of the work giving abstract and detailed measurements for the various items of work executed during the period. The payment for this invoice shall be made as per payment terms mentioned in the WO. Detailed check list will be provided to the contractor to facilitate correct documentation. The contractor shall provide bifurcation of actual value of contractor's material and actual value of services in the invoice submitted to Reliance for payment.
Payment shall be made for completed items unless otherwise specifically mentioned. The quantity for individual items shall be upto WO quantities and payment for extra quantities in respect of WO items and that for extra jobs done shall be only after amending the WO. For all such extra items it shall be the contractor's responsibility to provide a complete break-up of Material, Labour, Equipment and other costs as a part of rate analysis back-up so as to appreciate the rate proposed by the contractor.

RA Bill shall be raised as per the progress of work. No other payment other than explicitly mentioned in the Order shall be paid to the contractor under any circumstances.

The Contractor is aware that the Bill payment process is being carried out through SAP-system and any extra items and for items exceeding the BOQ quantities shall be only paid after the due WO amendment is carried out through SAP system. The Contractor is aware of the fact that any amendment process through SAP would take 7 to 10 days' time and amendment cannot be possible when a

payment of RA bill is in progress. Further amendment will be made only once in Fit-out orders and for a minimum of 20 Lacs variation in Green Field projects. Contractor agrees that at no point of time work progress will be slowed down or affected for want of amendment in WO for the reasons stated above.

14.3 Final Bill

The contractor shall prepare an invoice in the format approved by the owner containing all outstanding amounts which the contractor believes are due to him from the OWNER with reference to all works executed (the FINAL BILL). The final bill shall be drawn up by applying the applicable rates specified in the "Schedule of Rates" to the approved certified measurement quantities. The Final Bill shall be raised after issue of final WO amendment. The contractor shall submit the quantity and item rate for WO items and extra items executed duly certified by engineer in charge after completion of the work and handing over the site. These details shall only form basis for issuing the final amendment. Payment will be released within 30 days from the date of receipt of correct bill with certified measurements sheets by the Project In charge along with the Standard Work Order Closure Documents.

The contractor shall submit the final bill along with the prescribed work order closure documents and enclosures to the person designated by the Owner.

Payment of each bill (RA & final) shall be subject to statutory deductions and other withholdings if any pending submission of statutory documents for PF compliance.

The contractor has considered in his agreed rate and for the given scope, the applicable Labour Component (LC). The Wage Register as per the Format provided by the Owner to be provided with authentic proof for

processing any RA Bill. Based on the wage component applicable, the contractor shall provide compliance documents (PF, ESIC etc.) for the labour wages paid duly certified by the EIC/authorised personal, for the RA-Bill value and for the service period in consideration.

The contractor shall provide EIC certified Wage sheets and compliance challans as a proof of payment for the RA-Bill under consideration. The Contractor shall be liable for the applicable Penalty and Interest on the noncompliance of PF, ESIC etc. if found in deviation to the actual compliance requirements on LC.

Form-11 is not acceptable and any contractor would like to submit Form 11 as a document for PF and other statutory compliances shall get the same approved from EIC before initiating deployment of labour on Form-11 basis.
Any Payment Release of RA- Bills shall be considered as ad-hoc for the purpose of this clause and errors noticed shall be corrected in the Final Bill. Any calculations overlooked or wrong submissions by contractors that are deducted by the Owner after release of Final Bill, then Owner shall be entitled to debit such amounts to the contractors Retention amount and/or any other Hold amount. In case the retention amount is found short of debit amount then the contractor agrees to have the amount paid through DD/cheque and/or authorises debiting such amount to other works being carried out by the contractor for the Owner.

Notwithstanding the release / payment of bills by the Owner to the contractor, the contractor shall ensure that the payment of wages and other statutory dues to his workers is made within the statutory time limit. There shall not be any linkage between release / payment of the bill by the Owner to the contractor and the payment of wages / other dues by the contractor to his workers, suppliers etc.

However as per the recent directives of ministry of labour and employment, the vendor unconditionally agrees to pay wages (both monthly and daily) to workers/employees engaged by him or by his sub-contractor(s), either through on line transfer to their bank accounts or through cheque. He further ensures that there will be no cash payment against wages payable to his workers.

The final bills to be submitted by the contractor shall be accompanied by the prescribed documents applicable to this Contract. The Contractor shall collect the details and formats of such documents from Engineer-in-charge / other designated authorities. The final bill duly certified by EIC (With Excess/Saving Statement, with Proper Service Codes, Detailed Item Description etc), in the normal course shall be submitted within 7days of the completion of the job under reference with all relevant documents like final material reconciliation, contract closure forms duly filled in and certified etc.

Final bill , complete in all respect i.e with requisite closure documents, no claim certificates etc , duly certified by EIC to be submitted within 7days of completion of job under reference.

In case agency fails to submit final measurements within 7 days from the completion of the job , owner shall be at discretion to treat last R/A bill as paid as FINAL & initiate WO closure in system. No further communication /request for re-opening of WO shall be entertained

Further any final measurement as taken by the authorized person of the owner/EIC shall be final and binding on the contractor including recovery of the excess payment made to contractor in any previous bills.

Contractor has to compulsorily submit digitally sign

invoice in lieu of physically signed invoices for payment purpose. Non-compliance in the same shall delay the payment which please note and shall not be a reason for any delays in work completions

14.4 Contractor may provide extension of credit for the Services covered under this Agreement / Contract Order for a period of three hundred and sixty days (360) days against irrevocable letter of credit (LC) / factoring arrangement from any Indian bank of repute which the Contractor may at his option negotiate/discount with mutually acceptable bank, thirty (30) days after satisfactory completion and acceptance of Services and receipt of correct and complete Invoice. All resulting interest and bank charges for letter of credit shall be to Company's account

14.5 Payment against RA (Running account Bills) and Final Bills shall be paid by the employer either from its Account Payee department or through LC (Letter of Credit) from authorized Banks of the employer, for which contractor shall ensure and provide promptly on request, such documents and compliances as called for by the Employer's Banker from time-to-time. Employer reserves its right to choose the option of payment mechanism and change the same, if felt necessary during the currency of the WO without having to make any prior intimation or seek concurrence from the contractor . Payment through LC is a commitment by Employer to the Bankers on be-half of the contractor that there will be a specific work done amount that will be drawn by the contractor by providing the services as per WO stipulations. Not drawing the amount allocated within the time frame would lead to a loss to the lending bank and therefore shall be deemed as "Non-Performance" of the contractor and such actions as applicable as per WO terms shall be applicable. Contractor shall therefore adhere to the schedule of progress and raise RA Bills by providing all such requirements for certification by the EIC to ensure prompt payments and timely completion of projects by maintaining the cash flow.

14.6 We expect contractor to adhere to all such statutory requirements in TOTO, within the time lines to ensure employer can consider your payment on time and thereby cash flow is maintained. Contractor agrees that payment shall never be made an issue for non-performance in deliverables in case contractor is unable to fulfill any of the above requirements pre-conditions for release of payment by Employer.

14.7 Contractor is made aware that Employer is utilizing the services based on his credentials and assurances to comply all such ethically and based on sound engineering practices he is expected to follow while delivering the product on a continuous basis. As a preferred and loyal contractor Employer would expect he instills in each of his employees engaged for the work that they follow certain expected ethical standards and adhere to the Quality, Safety and correct billing processes (NO Excess Claims). It shall also be important that, all statutory requirements like HR-IR, GST, and site facilities including such care and precautions during COVID-19 phase specified by Govt. authorities. Employer is maintaining a Score Cardon above parameters and successive low scoring by contractor with no improvements would lead to stoppage of further award of works to the contractor.

Goods and Services Tax:

14.8 The Contractor and the recipient agree that in the event the Goods and Services Tax regime requires it to register in accordance with the applicable statute, both parties shall promptly complete such registration and shall at all times remain compliant with and responsible in respect of such statute. Both the parties agree to promptly share the registration number or other unique id/ number and GST registered address with each other to enable to undertake relevant compliances;

14.9 For the purposes of this Agreement, GST shall

include the Central Goods and Services Tax ('CGST'), the State Goods and Services Tax ('SGST') / Union Territories Goods and Service Tax ('UTGST') and/or the Integrated Goods, Services Tax ('IGST'), and GST Compensation Cess (Cess)as may be applicable;

14.10 In due compliance of its obligations, the Contractor hall remit the GST so charged (as applicable) from the Recipient, subject to a valid invoice / debit note raised within 30 days from the day of provision of service , to the appropriate government authority and file GST returns as prescribed, within the statutory timelines, mentioning all appropriate and relevant information including GST registration as provided to , the Contractor by the Recipient on the GSTN platform, which enables the Recipient to claim timely credit of GST in the appropriate GST registration. In the event the credit of GST is not granted or denied to the Recipient under its appropriate GST registration, which has been provided to the Contractor, under applicable laws for non-payment of taxes charged to the Contractor, or on account of any non-compliance (including but not limited to non-filing of information, non-filing of returns, non-payment of appropriate GST to appropriate government)/incorrect submission of information on the GSTN platform), then the Recipient shall inform about such incorrect submission to the Contractor and the Contractor shall rectify the said non-compliances/errors to ensure that the Recipient gets the credit in the subsequent month. In the event, the non-compliance/ error is not rectified by the Contractor as above, then the Recipient shall have the right to withhold such shortfall against any subsequent payments of the Consideration payable to the Contractor or recover the amount of GST charged to it along with the interest, penalty and/or any other cost from the Contractor, however in case of subsequent granting of credit to the Recipient upon compliance by the Contractor, the Recipient shall refund the money so recovered from the Contractor on account of denial of credit, excluding the interest and penalty which may

already have been deposited with the government in accordance with GST Law.

14.11 The tax charged by the Contractor in the invoice would be paid by the Recipient, only after the credit is reflected on GSTN platform;

14.12 If the Recipient has already paid the Consideration and there is a decrease in such Consideration on account of clauses of the agreement, then the Contractor will issue to the Recipient a credit note for the differential amount. The credit note should be issued in accordance with applicable laws. The Recipient shall, upon receipt of credit note, ensure to reverse the GST credit to the extent of GST shown in the mutually agreed credit notes issued by the Contractor in his valid return ;

14.13 If there is an increase in the Consideration due to provision of additional deliverables, then the Contractor will issue to the Recipient a debit note for the differential amount. The debit note should be issued in accordance with applicable laws;

14.14 All invoices, credit notes and debit notes issued by the Contractor must set out the various taxes that are charged including but not limited to the GST. All invoices, debit notes and credit notes must be issued in accordance with the applicable laws and should be sent to the Recipient, within 7 (seven) calendar days of its issue. If any invoice or debit note or does not set out the taxes that are payable with respect to such invoice or debit note or timely uploaded on the GSTN portal, then the Recipient will not be required to pay any such taxes and such taxes will be borne by the Assignors;

14.15 The Contractor shall nominate a person who will be single point of contact for the Recipient, for all communication regarding any discrepancy on GSTN reporting by the Assignors;

14.16 If any tax proceedings are initiated against a Party, in relation to the transactions contemplated under this Agreement, the other Party shall fully co-operate by furnishing all information as available on timely basis as may be required by such Party, including but not limited to confirmation of booking/accrual of expense; and

14.17 As and when there is any change in the GST rules, acts, regulations on input credit (which are available in public domain as on date of signing this Agreement), the Parties shall discuss the provisions relating to the same and may enter into a further amendment, if required, to address each other's concerns in relation to such compliance. The term "invoice" used in this Clause shall mean accurate and valid signed invoice.

15.0 TAXES & DUTIES:-

15.1 The CONTRACT PRICE, pricing for CHANGES, and all other prices and rates set forth in the CONTRACT, are inclusive of all TAXES, other than the GST at prevailing rates.

15.2 For Supply of Services to Domestic Tariff Area (DTA):

15.2.1 Except as provided in Section 15.2.2 below, with respect to the supply of SERVICES pursuant to the CONTRACT, the CONTRACTOR hereby undertakes to pay, deposit with the appropriate GOVERNMENTAL AUTHORITIES under the GST LAW and discharge the liability for the GST AMOUNT in accordance with the GST LAW where the GST LAW obligates the CONTRACTOR as the taxable person to pay and discharge such liability.

15.2.2 The OWNER shall pay, deposit with the appropriate GOVERNMENTAL AUTHORITIES under the GST LAW and discharge the liability for the GST AMOUNT in accordance with the GST LAW if the GST LAW obligates the OWNER as the taxable person to pay and discharge such liability.

15.2.3 Subject to the provisions of this Section 15, GST as applicable shall be included as an item for the

Work order value at the time of work order issuance and is subject to change as per applicable laws and as per actual work executed in the final certified bill the CONTRACT.

15.2.4 Except as provided in Section 15.2.5, the OWNER agrees to reimburse to the CONTRACTOR any incremental GST AMOUNT where the increase in the rate of GST under the GST LAW is made effective before the scheduled date of delivery of the undelivered SERVICES as set forth in the CONTRACT. The CONTRACTOR agrees to pass on the benefit to the OWNER as result of decrease in the rate of GST under the GST LAW.

15.2.5 The CONTRACTOR shall solely bear and pay any incremental GST AMOUNT levied under the GST LAW as a result of application of increase in the rate of GST for (a) any delay in completion of the SERVICES attributable to the CONTRACTOR; or (b) re-performance by the CONTRACTOR of defective SERVICES or defective WORK, attributable to the CONTRACTOR, or (c) combination of both the events set forth in this Section 15.2.5 (a) and (b).

15.2.6 Without prejudice to Section 15.2.7, the CONTRACTOR hereby undertakes to comply with the GST LAW and provide the OWNER with correct invoice(s), all SUPPORTING DOCUMENTS and information in order that the OWNER is able to avail applicable input tax credit of the GST AMOUNT paid by the CONTRACTOR or the OWNER, as the case may be. In the event of any mismatch or discrepancy in the details provided by CONTRACTOR and OWNER in their respective GST returns is reported in the GSTN, then the CONTRACTOR shall resolve such mismatch or discrepancy (in the event such mismatch or discrepancy is attributable to any act or omission of the CONTRACTOR) or otherwise cooperate with the OWNER to resolve such mismatch or discrepancy (in the event such mismatch or discrepancy is attributable to any act or omission of the OWNER) within the period prescribed by the GST LAW.

15.2.7 The CONTRACTOR shall, among other compliances required to be made by the CONTRACTOR as set forth in the GST LAW, comply with the following:

(a) ensure that correct PLACE OF SUPPLY, as determined

in accordance with the GST LAW, is provided on all INVOICES issued by the CONTRACTOR;

(b) timely issue all INVOICES in accordance with the GST LAW, including all particulars as prescribed under the GST LAW with all SUPPORTING DOCUMENTS in accordance with invoicing instructions set forth in the CONTRACT to enable the OWNER to timely avail the input tax credit of the GST AMOUNT paid by the CONTRACTOR with appropriate GOVERNMENTAL AUTHORITIES;

(c) pay in accordance with the GST LAW the GST AMOUNT with appropriate GOVERNMENTAL AUTHORITIES, including within the time prescribed by the GST LAW and timely file all returns as required by the GST LAW;

(d) provide the OWNER with the 'receipt voucher' as required under the GST LAW for the ADVANCE PAYMENT received by the CONTRACTOR from or on behalf of the OWNER;

(e) provide the OWNER with the 'refund voucher' as required under the GST LAW for the ADVANCE PAYMENT refunded by the CONTRACTOR to the OWNER (a) in the event no supply or partial supply of SERVICES is made by the CONTRACTOR to the OWNER, no invoice is issued by the CONTRACTOR to the extent of such non-supply and the OWNER has terminated this WORK ORDER to the extent of such non-supply; or (b) in the event the OWNER has rejected the SERVICES for any reason set forth in the CONTRACT;

(f) ensure that correct GST registration number of the CONTRACTOR is provided by the CONTRACTOR to the OWNER for incorporation in the WORK ORDER from the place where the CONTRACTOR is liable to issue invoice for the supply of SERVICES;

(g) ensure that correct GST registration number of the CONTRACTOR and the OWNER is provided on all INVOICES issued by the CONTRACTOR;

(h) ensure that correct GST registration number of the CONTRACTOR and the OWNER is furnished in the CONTRACTOR'S sales details uploaded as specified in all applicable returns to be filed by the CONTRACTOR in the prescribed formats under the GST LAW;

(i) ensure that due process as prescribed under GST LAW is followed in all cases of defective SERVICES or WORK, irrespective of whether such defective SERVICES or WORK is attributable to the CONTRACTOR or not, such that no loss is caused to the OWNER on account of denial of any input tax credit and no liabilities for any interest or penalties arises on the OWNER;

(j) accept the modification proposed by the OWNER in GSTR 2 in the event the OWNER notifies the CONTRACTOR that the OWNER does not accept the SERVICES or accepts only part of the SERVICES along with the issuance of credit note to the OWNER for such non-acceptance or partial acceptance of the SERVICES;

(k) Ensure prompt re-performance of the rejected SERVICES or WORK. In the event CONTRACTOR delays in re-performance of the rejected SERVICES or WORK, then CONTRACTOR shall be solely responsible for any GST compliance under GST LAW; and

(l) Provide on all INVOICES correct service accounting code (SAC) which are previously provided by the CONTRACTOR to the owner and incorporated in this WORK ORDER. In the event, CONTRACTOR would like to provide a new SAC for the services mentioned in the WORK ORDER issued by the Owner, CONTRACTOR shall intimate the same to the Owner before providing service and CONTRACTOR shall provide such service under the new SAC, only after receiving an amendment to the WORK ORDER from Owner incorporating new SAC.

15.3 The CONTRACTOR represents and warrants that the CONTRACTOR has passed on to the Owner the cumulative total savings derived by the CONTRACTOR as a result of reduction in rate of tax on any procurement of goods or services or the benefit of input tax credit as required

under the GST LAW in prices or unit rates of the SERVICES.

15.4 The CONTRACTOR shall in good faith work out and promptly disclose to the Owner no later than fifteen (15) days of this WORK ORDER the cumulative total savings derived by the CONTRACTOR as a result of reduction in rate of tax on any procurements of goods or services or the benefit of input tax credit due to implementation of GST LAW and pass on all such savings to the Owner in the form of reduction in prices or unit rates. If the CONTRACTOR fails to pass on such benefit to the Owner then the Owner and the CONTRACTOR shall in good faith re-negotiate the prices or unit rates of the SERVICES to be delivered under this WORK ORDER within fifteen (15) days from the Owner's request for such renegotiation

15.5 Notwithstanding anything contained in the CONTRACT/WO to the contrary, the CONTRACTOR agrees and acknowledges that the Owner will not reimburse or pay the GST AMOUNT on any advance payment, if any made by the Owner to the CONTRACTOR until such time the Owner has adjusted the entire advance payment against the completion of the SERVICES by the CONTRACTOR and the Owner is eligible under the GST LAW to fully take the input tax credit on the GST AMOUNT paid by the CONTRACTOR on such advance payment and the Owner has taken such input credit tax credit.

15.6 In case any liquidated damages, or damages on any other account are payable by the CONTRACTOR to the Owner, the Owner shall raise an invoice as per GST LAW for such amounts deducted or to be recovered by the Owner from the CONTRACTOR and the applicable GST AMOUNT calculated thereon at the applicable rate and the CONTRACTOR shall pay or reimburse such amount of damages forthwith along with GST AMOUNT.

15.7 Except as specifically described in Section 15.1 above, the Owner shall not pay or reimburse CONTRACTOR for any TAXES, including any personal property taxes on CONSTRUCTION EQUIPMENT and other property owned by the CONTRACTOR, nor for any taxes based on the net income, earnings or profits of the CONTRACTOR. Additionally, if the CONTRACTOR imports

and exports MATERIALS, CONSTRUCTION EQUIPMENT, CONSUMABLES, tools, or any item for performance of the WORK, any custom duties, import or export taxes, GST, document fees, handling charges, or other fees related to the importation or exportation of such MATERIALS, CONSTRUCTION EQUIPMENT, CONSUMABLES, tools or other items, shall be paid by the CONTRACTOR and are not reimbursable by the Owner.

15.8 The CONTRACTOR shall cooperate with the Owner to optimize the structuring of subcontracts, imports, exports and the WORK so as to minimize the TAXES (including GST and other applicable taxes if any) that are reimbursable or payable by the Owner.

15.9 The CONTRACTOR shall be responsible for maintaining and furnishing all tax payment receipts and all other records and documentation required by GOVERNMENTAL AUTHORITIES or required or requested by the Owner relating to GST. The CONTRACTOR shall, at the request of the Owner, provide all such receipts and other documentation and information required or requested by the Owner with respect to the payment of such TAXES or any claim by the Owner for any related credits or refunds.

15.10 GST INDEMNITY

The CONTRACTOR shall indemnify and hold harmless the Owner from and against any and all (a) claims, suits and actions which are brought against; and (b) all LOSSES (including input tax credit, payment of interest, or imposition of penalties) incurred by, any member of the Owner for or relating to non-compliance by the CONTRACTOR of the requirements under the GST LAW, including as set forth in Section 6 of this SCC.

15.11 Tax Deducted At Source (TDS)

All payments to be made to the CONTRACTOR pursuant to this CONTRACT by the Owner shall be subject to tax deducted at source or withholding tax in accordance with APPLICABLE LAW at prevailing rates, unless the CONTRACTOR provides the OWNER with an order of waiver or concessional rate of TDS or withholding tax from the Income Tax Department specifying a lower rate. The Owner shall provide the CONTRACTOR a tax deduction certificate within a period of forty-five (45) days

from the end of each quarter.

15.12 TAX INDEMNITY

The CONTRACTOR shall defend, indemnify and hold the Owner harmless from and against (i) any non-payment or underpayment of any TAXES assessed on the CONTRACTOR in any jurisdiction or imposed by any GOVERNMENTAL AUTHORITIES that relate to the SERVICES or the CONTRACTOR'S performance of its obligations under this CONTRACT; (ii) any interest or penalty with respect to any non-payment or underpayment of any TAXES; and (iii) any demand by any Indian GOVERNMENTAL AUTHORITIES on account of any additional deduction of taxes at source or withholding tax, interest or penalty thereon.

15.13 In the event the Owner had inadvertently reimbursed the GST AMOUNT to the CONTRACTOR for which the Owner is denied input tax credit for any reasons attributable to the CONTRACTOR, then the Owner shall be entitled to adjust, off-set from the amounts owed by the Owner to the CONTRACTOR or recover from the CONTRACTOR such loss of input tax credit as the Owner may deem appropriate.

15.14 All statutory liability towards contractor staff including PF/ESIC/Workmen compensation act etc are included in the basic prices of this work order.

15.15 Labour Cess: Labour cess (under the provisions of Building and other constructions workers Act) wherever applicable shall be paid by the contractor directly to the statutory authorities.

It shall be the prime Responsibility of the contractor to Register his company under BOCW registration act , required for carrying out the construction works and also register and arrange necessary labour licensee for executing the work by following all such prevailing statutory obligations for deployment of labour force. Necessary cost towards the same is deemed to be included in the agreed rate other than labour cess as clarified below. Contractor shall submit a copy of such Registration to the EIC for reference and record. Fulfillment of this requirement , shall be binding on the contractor to receive any payments including

Mobilization advance (if any) and RA - Bills.

Labour welfare cess as per Building and Construction Workers Act 1996 will be paid as per the regulations by the Contractor to the Government Authorities. The amount paid by the Contractor against the Labour Welfare Cess will be reimbursed by Owner to the contractor as per actuals, against contractor's claim with necessary proofs like Demand Note, Payment Challan's etc." and such authentic documents. Any excess payment made by contractor due to negligence/ignorance shall not be reimbursed just by providing payment proofs. The contractor shall be solely responsible for any legal proceeding / penalty if any occurs due to delay in above compliance, if it is established during the contract period/ extended contract period or after the closure of contract, if any

The Contractor shall ensure that such payments are made by including in the payment challan the following:

1. Reference no of property address
2. Clearly mention the Work order No
3. Name of the Owner (format-Owner) that had issued the WO and on whose behalf payment is made.

Clarification required, if any, shall be obtained from the EIC.

The Owner would reimburse the Labour Cess paid on providing the proof of payment by the contractor. Reimbursement shall only be made where the proof of payment is provided with the above details duly incorporated in payment challan.

16.0 QUALITY ASSURANCE & QUALITY CONTROL:-

The Contractor shall submit his QA plan, organogram and Quality control procedure before the start of work. The

Contractor shall also nominate one qualified engineer for QA/QC function. Jobs done by the contractor shall be inspected by the Engineer-In-Charge. If any non-conformance is observed, the contractor will attend/ rectify/ repair the same free of cost. The Contractor shall generate inspection report in the prescribed format and shall obtain stage wise clearance from the Engineer-In-Charge.

If the quality of the job carried out is not satisfying the standards and specifications of the contract, then the Engineer in charge shall notify the contractor of the defective work and in case, if the Contractor fails to rectify the defective works, then the owner will get this done by employing any other contractor and the charges paid to other agency will be recovered from the contractor's bill. Contractor shall carry out relevant test as per IS specification on Building materials/concrete.

If any defect is noticed during the defect liability period, the owner will issue notice to the contractor to attend. After 14 days of such notice, if contractor does not start the rectification work to the satisfaction of the owner, the work shall be carried out by the owner and the cost shall be debited to the contractor.

17.0 POST ORDER CO-ORDINATION PROCEDURE:-

The Contractor shall correspond with Engineer-in-charge for any issues related to the work and where commercial issues are involved, the same shall be intimated to the Contracts Dept. The Contractor shall send all payment/ Contractual related correspondence (other than Invoices) to the attention of the Contracts Manager. Jobs done by the contractor shall be inspected by the Engineer-In-Charge. If any non-conformance is observed, contractor will attend/ rectify/ repair the same at his own cost free of cost.

All communications, correspondence and documentation requested in this Work Order shall be sent to the

Engineer-In-Charge on the address mentioned on the cover page of the order as per post order co-ordination procedure.

18.0 INVOICING:-

Invoices shall be prepared in duplicate and in the name of the Owner and address as mentioned in the header text of the WO.

site address :- as mentioned in the Contract Riders of the Work Order

Submission of Bills address-
To The Zonal Construction Head/EIC (as on the Page 1 of the WO)
Please Refer Contract Rider of the Work Order for details.

Contractor must compulsorily submit digitally sign invoice in lieu of physically signed invoices for payment purpose. Non-compliance in the same shall delay the payment which please note and shall not be a reason for any delays in work completions

18.1 Tax invoice check list (under the new provisions of the GST Act)

Subject to rule 7 of the GST rules, a tax invoice referred to in section 31 of CGST Act shall be issued by the registered person containing the following particulars:-

(a) name, address and GSTIN of the supplier;
(b) a consecutive serial number not exceeding sixteen characters, in one or multiple series, containing alphabets or numerals or special characters hyphen or dash and slash symbolized as "-" and "/" respectively, and any combination thereof, unique for a financial year;
(c) date of its issue;

(d) name, address and GSTIN or UIN, if registered, of the recipient;
(e) name and address of the recipient and the address of delivery, along with the name of State and its code, if such recipient is un-registered and where the value of taxable supply is fifty thousand rupees or more;
(f) HSN code of goods or Accounting Code of services;
(g) description of goods or services;
(h) rate of tax (central tax, State tax, integrated tax, Union territory tax or cess);
(i) place of supply along with the name of State, in case of a supply in the course of inter-State trade or commerce;
(j) address of delivery where the same is different from the place of supply;
(k) whether the tax is payable on reverse charge basis; and
(l) signature or digital signature of the supplier or his authorized representative:

If the documents do not contain either of the above particulars, the documents shall be treated as Defective and documents shall be returned to the contractor.

18.2 The invoice shall be issued within a period of thirty (30) days from the date of supply of services as per the GST Act and rules framed thereunder.

18.3 The serial number of invoices issued during a tax period shall be furnished electronically through the Common Portal in FORM GSTR-1.

18.4 A revised tax invoice referred to in section 31 of the GST ACT and credit or debit note referred to in section 34 of the GST Act shall contain the following particulars -

(a) the word "Revised Invoice", wherever applicable, indicated prominently;
(b) name, address and GSTIN of the supplier;
(c) nature of the document;

(d) a consecutive serial number not exceeding sixteen characters, in one or multiple series, containing alphabets or numerals or special characters -hyphen or dash and slash symbolized as "-" and "/"respectively,, and any combination thereof, unique for a financial year;
(e) date of issue of the document;
(f) name, address and GSTIN or UIN, if registered, of the recipient;
(g) name and address of the recipient and the address of delivery, along with the name of State and its code, if such recipient is un-registered;
(h) serial number and date of the corresponding tax invoice or, as the case may be, bill of Supply;
(i) value of taxable supply of goods or services, rate of tax and the amount of the tax credited or, as the case may be, debited to the recipient; and

(j) signature or digital signature of the supplier or his authorized representative:

18.5 Every registered person who has been granted registration with effect from a date earlier than the date of issuance of certificate of registration to him, may issue revised tax invoices in respect of taxable supplies effected during the period starting from the effective date of registration till the date of issuance of certificate of registration:

18.6 Provided that the registered person may issue a consolidated revised tax invoice in respect of all taxable supplies made to a recipient who is not registered under the Act during such period:

18.7 Provided further that in case of inter-State supplies, where the value of a supply does not exceed two lakh and fifty thousand rupees, a consolidated revised invoice may be issued separately in respect of all recipients located in a State, who are not registered under the Act.

18.8 Any invoice or debit note issued in pursuance of

any tax payable in accordance with the provisions of section 74 or section 129 or section 130 shall prominently contain the words "INPUT TAX CREDIT NOT ADMISSIBLE".

18.9 The invoice shall be prepared in duplicate, in case of supply of services, in the following manner:-

(a) the original copy being marked as ORIGINAL FOR RECIPIENT; and

(b) the duplicate copy being marked as DUPLICATE FOR SUPPLIER.

The Service provider (contractor) is expected to strictly comply with all the relevant provisions of GST laws and rules (CGST/IGST and relevant SGST Acts), as may be applicable to this transaction including submission of invoices and charging correct GST and furnishing of correct HSN/SAC codes.

The owner will in no way be responsible for any interest , penalty or any prosecution due to any act of negligence or omission on part of the Service Provider(contractor) and action initiated by department against them for non-compliance, this will be entirely borne by the Service providing contractor and to his account.

The owner shall also recover any amount disallowed by the any tax authority for the time being in force on account of setoff claimed by the owner, due to any such default by the Service provider.

19.0 RETENTION MONEY:-

In the case of Retention Money the Owner shall deduct an equivalent amount at the time of payment of every monthly RA bill @ 5% of RA bill which shall be refunded (interest free) after the expiry of a period of 12 months OR after the expiry of the defects liability period as given in this WO.

The Contractor shall have no right to claim that such Retention Money to be utilized in payment of any of Contractor's dues to the Owner. The Owner may however, at his discretion, be entitled to deduct and apply the Retention Money towards any amounts that may become due and/or payable by the Contractor if Contractor fails to carry out any of his obligations under the Contract or commits a breach of any of the terms of the Contract, express or implied. Should Owner at any time do so and advise Contractor of the same, the Contractor shall forthwith provide the Owner with Demand Drafts for such further sums as may be necessary to restore the Retention Money to the required extent.

Subject to contractor attending all the defects notified during the DLP at his own cost, the Retained amount or the amount remaining if any post expenses incurred by the Owner in rectifying the defects not attended by the contractor, shall all be refunded, provided contractor makes a request Application for Release of Retention Money for refund as per Format P-29(Revised) duly filled in and stamped and signed and submits to the EIC post expiry of DLP " . Non-submission of the request as per Format P-29(can be collected from Project office) shall delay the retention money and contractor shall only be responsible for such delays attributable due to negligence of the contractor and irrespective of the period of delay No interest shall become payable to the contractor on the retention money that may be due to the contractor

20.0 PERFORMANCE BANK GUARANTEE:- (Not Applicable)

21.0 OWNERS SUPPLIED MATERIAL & RECONCILIATION:-

21.1 The Owner may issue Owner's supplied material as mentioned below in this contract at their stores/ware house. The owner's supplied materials shall be issued

as per requirement and commensurate with the progress of the work. The Contractor shall periodically submit his 15 days material planning as look ahead schedule to the owner for optimization of material storage. Any damage caused during handling / storage of the Owner's supplied material shall be recovered from the contractor at penalty rate as per the discretion of the Engineer in charge.

21.2 All excess Owner's supplied material with the contractor either in full length, or cuts or scrap etc. shall be returned to the owner's stores/ware house as directed by the EIC on completion of the work.

21.3 The contractor shall not be entitled for any compensation either for loading, unloading, carriage or incidental charges for collection and return of surplus Owner's supplied material from and to the store where from they are issued.

21.4 Safe custody of the Owner's supplied material shall be the responsibility of the contractor. Any loss of Owner's supplied material due to theft, damage or any other reason shall be recoverable from the RA bills of contractor at a penal rate after considering permissible wastage norms mentioned in the order.

21.5 The Contractor will submit reconciliation of the Owner's supplied material and Consumables along with the final bill. If the Contractor fails to submit Reconciliation Statement, then the compensation payable as above can be withheld until such time aforesaid statements are submitted. Contractor shall also submit every quarter, list of asset wise cost for the materials, consumables and services utilized.

21.6 In the event Contractor consumes any of above Owner's supplied material in excess of that required to execute the works including permissible wastage allowances and tolerances, owner shall recover from Contractor landed cost of the material plus 35% towards penalty and Handling charges.

21.7 In the event of loss or damage of Owner's supplied material or any Contractor supplied materials due to negligence on Contractor's part, the cost of such lost/damaged materials shall be recovered by owner from Contractor on the same basis as above.
21.8 The Contractor will submit reconciliation of Owner's supplied material and Consumables along with every bill.

21.9 If the Contractor fails to submit Reconciliation Statement, then the legitimate payables if any can be withheld until such time aforesaid statements are submitted.

21.10 Contractor shall also submit periodically as per instructions of EIC , list of asset wise cost for the materials, consumables and services utilized.
21.11 Permissible wastages and losses of Owner's supplied material are as detailed below:
1) Tiles Supplied by RIL
a. Tiles once delivered by RRL to Site, will be handed over to Contractor with Quantity Checks and joint sign off with RRL EIC.
b. Contractor will be responsible for maintaining/storing/handling the tiles at site.
c. Tiles if found defective and the same is confirmed by Quality & supplier, the material will be picked up by the supplier , till that time, tiles need to be protected by Civil & Interior contractor.
d. Tiles reconciliation
i. Deviation in supplied quantity up to 5% acceptable
1. 1% invisible / untraceable loss
2. 4% visible loss to be accounted by contractor with proof.
ii. Deviation above 5% will be debited to the contractor @ market rate of Rs. 45/ sft in case of Vitrified tiles and any special tiles if any it will be deducted as per actuals.
e. Balance Reusable tiles to be handed over to EIC, the same can be packed and send back to Warehouse with proper Documentation and SAP Transaction MRN / STO-STN

2) Lights supplied by RIL
a. Light fittings once delivered by RRL to Site, will be handed over to Contractor with Quantity Checks and Sign Off with RRL EIC
b. After fixing all light fittings as per Drawings, balance lights if any, should be handed over to EIC, the same can be packed and send back to Warehouse with proper Documentation and SAP Transaction MRN / STO-STN
c. Defective Lights if any, should be bought in to EIC notice, recorded and to be communicated to OEM for replacement.

3) HVAC Machines Supplied by RIL
a. All AC Machines supplied by RRL to Site, will be handed over to HVAC Contractor with Quantity Checks and Sign Off with RRL EIC
b. HVAC Machines too be installed and tested
c. If any defect identified, the same should be bought in to EIC Notice and to be communicated to OEM for attending the problem.
d. Any Extra Machine (due to layout interim changes if any), should be handed over to EIC, the same can be packed and send back to Warehouse with proper Documentation and SAP Transaction MRN / STO-STN

4) Panel / stabilizer / Invertor / Supplied by RIL
a. Electrical Equipment's supplied by RRL to site, will be handed over to Electrical Contractor with Quantity Checks and Sign Off with RRL EIC
b. Electrical Equipment's to be safely shifted / located to designated location as per layout.
c. If any defect identified, the same should be bought in to EIC Notice and to be communicated to OEM for repair / replacement.

5) DG Supplied by RIL
a. DG Supplied by RRL to site , will be handed over to Electrical Contractor With all items checked and sign off.
b. Contractor to ensure the safety of DG while storing / handling / relocating.

c. If any defect identified, the same should be bought in to EIC Notice and to be communicated to OEM for repair / replacement.

21.12 Reconciliation of Owner's Supplied Material: Contractor shall ensure that the wastages of Owner's supplied material are kept to the minimum with maximum capping of wastage as above. It shall be the responsibility of the contractor to check and collect the Owner's supplied material before using them at their final location. Cross verification of the Owner's supplied material utilized shall be checked with the Theoretical quantity as per GFC plus a maximum wastage. Any material used by the contractor in-excess of the theoretical quantity shall be recovered from the contractor Bills payment (clause 21.6). EIC decision in this shall be final and binding on the contractor

22.0 EXTRA WORKS/CHANGES:-

22.1 If the altered/additional work is required to be executed as per Owner's requirements for which there is no established rates in Contract, the same shall be payable as per provisions stated as here under in its sequence.

22.2 As far as possible the rates for such item(s) shall be derived from the existing item in the Contract.

22.3 If rate cannot be derived as stated above, the rate shall be derived on the basis as under

22.4 Reasonable cost of consumables, materials, labour and supervision, inclusive of tools, tackles, Plant & Machinery, plus fixed percentage on this cost to cover contractor's profit and overheads. All these costs are required to be supported by bills, quotations as required by the Owner.

22.5 Owner's decision towards reasonableness regarding labour cost, material consumption and material cost

shall be final and binding on the Contractor.

22.6 Contractor shall proceed diligently with performance of the work, pending final resolution of any dispute, disagreement regarding rate and /or additional time and comply with Owner's instructions regarding changes /Extra works.

23.0 ESCALATION:-

Prices quoted by the contractor and accepted by the Owner are Firm for the entire period of contract including extended period if any.

24.0 INSURANCE:-

The Contractor shall be responsible for all insurances required for satisfactory performance of the work and statutory compliances. Prior to commencement of Work, the Contractor shall submit ESIC/WCP policy to the Owner and all the insurance policies shall be valid throughout the period of Contract.

The contractor shall also cover Insurance for contractor's employees, tools & tackles, equipment & materials at site apart from Third party insurances.

25.0 SAMPLES:-

The Contractor shall furnish to the Engineer-in-Charge for approval when requested or if required by the specifications, adequate samples of all materials and finishes to be used in the work. Such samples shall be submitted before the work is commenced and in ample time to permit test and examinations thereof. All the materials furnished and finishes applied in actual work shall be fully equal to the approved samples.

26.0 SECURITY:-

The Contractor shall be solely responsible for security

of his materials, men, equipment at site and other locations associated with the performance of the work till issuance of compliance certificate.

The Contractor has to maintain proper record of his tools & tackles, equipment, machinery and any other items with proper gate entry & shall provide access to the Engineer In charge for its inspection on as and when required.

27.0 DELAY, LIQUIDATED DAMAGES (LD) EXTENSION OF TIME:-

27.1 The time allowed for carrying out the works as entered in the order shall be strictly observed by the contractor. The work shall throughout the stipulated period of the contract be carried out with all the due diligence (time being essence of the contract).

27.2 Without prejudice to any other rights or remedies available to the Owner under the Contract or in law, if the Contractor, for any reason other than Force Majeure, suspension of work by the Owner in terms of the Contract and issuance of alteration Order, fails to achieve the targets specified in the Progress Schedule by their due date or fails to complete the Work in accordance with the Completion Period, Contractor shall be liable to pay to the Owner, as ascertained and agreed liquidated damages an amount equivalent to 1% of the Total Contract Value for each week of delay or part thereof subject to a maximum of 5% of the Total Contract Value.

27.3 Entire work shall be completed within the stipulated time as mentioned above from the date of commencement of Work Order. After deducting the Liquidated Damages, the owner reserves the right to terminate the contract and get the balance work executed by other agencies at the risk and cost of the contractor. The amount of penalty shall be recoverable from the payments due to the Contractor on this or any other contract with the Owner.

27.4 The Owner may at his sole discretion and without prejudice to his right to recover any or all of the liquidated damages by any other method of recovery, deduct the amount of such liquidated damages from any monies due or which may become due to the Contractor.

27.5 For delays not attributed to the contractor, he shall get the extension of time in completion period as decided by the owner. However the contractor shall not be entitled to claim any extra on account of these delays; whatever may be the reason(s).

27.6 The payment or recovery of sums hereunder shall not relieve Contractor from any of his other obligations and liabilities under the Contract.

27.7 If the performance is below 70% of the planned target and continues for two consecutive weeks, the contract will be cancelled & the balance work will be got executed at the risk & cost of the contractor in addition to the levying of the penalty.

27.8 Interim Penalty: The Owner reserves the right to impose an interim penalty in case the contractor delays any particular job as per the program of completion given by them. This penalty amount will be 1 % of the value of the particular work per day subject to a maximum of 5 % of value of that particular item. This amount deducted against the interim penalty shall be part of the final penalty only and in case the total job is completed within the specified contract duration, the amount deducted interim penalty shall be released to the contractor.

28.0 STATUTORY COMPLIANCES:-

28.1 The CONTRACTOR will take necessary labour license, workmen compensation policy & ESIC as applicable, registration with the authority etc and obey all laws, rules and regulations related to labour, as specified in General Conditions of the Contract.

28.2 The first RA bill shall be released only on submission of a copy of labour license duly attested by the Owner's Administration in the prescribed format. If labour license is not applicable, the contractor shall obtain a confirmation to this effect from the Owner's Administration.

a) The contractor while executing this contract must comply with all statutory requirements. The Contractor should maintain all records such us PF challans for workers, labour/wage register, GST or other Tax Challans etc. and shall submit the copies of the same if required by the Owner.

b) In case PAN No. (with proof) is not provided, payment of invoices will not be made.

28.3 The contractor shall disburse wages to his workers and shall take their signature with the date and time on each page of the wage sheet and shall provide a copy of such certified wage sheet for the previous month to the authorized representative of the Owner for their records.

29.0 INDEMNITY:-

Notwithstanding anything contained herein, the Owner shall not be responsible or liable in any manner whatsoever for any claims, suits, liabilities, costs, damages, losses and expenses incurred or suffered by the Contractor, its agents, personnel, sub-contractors and representatives, including in respect of any injury, death, damage to or loss of its and their or any third party's personnel, employees, equipment, material or property, as the case may be, arising or resulting from or occasioned by or in connection with any of the Work envisaged hereto including the performance of the work by the Contractor or the Owner or any of their personnel, sub-contractors, employees and agents.

The Contractor shall indemnify and hold harmless the Owner, its personnel and agents from and against any and all suits, claims, liabilities, costs, damages, losses and expenses (including legal fees and expenses) of every kind and nature with respect to but not restricted to the following:

a) Damage of or loss to any Owner's material from the date of delivery to the Contractor to the extent they are under Contractor's care or control;

b) Damage to or loss of equipment and/or property, equipment, tools, aids, materials, spares of any personnel, employee, contractor, agent of the Owner or the Contractor or any third party;

c) Environmental damage occurring at the Site or at the premises of the Contractor or pollution emanating from the property or equipment of the Contractor, its agents, Sub-contractors to the extent they arise or result from, or are occasioned by or in connection with any of the works envisaged hereto including the performance of the work by the Contractor or any other act or omission, by the Contractor or third parties, and any of their personnel, sub-contractors, employees and agents.

The Contractor shall indemnify and hold harmless the Owner against all actions, proceedings, claims demands, costs and expenses whatsoever arising out of or in connection with any breach of any applicable law by Contractor, its employees, Sub-contractors, agents, representatives, personnel or any other persons for whose action it is liable.

In the event the Owner is required by a court of law to pay any amount in respect of any claims or demands as aforesaid the amount paid and costs incurred by the Owner, shall be reimbursed by the Contractor to the Owner or alternatively be deducted by the Owner from any sum due or thereafter becoming due to the Contractor from the Owner under the Contract at the

Owner's discretion. The Contractor shall not be entitled to dispute or question payments of any such amount by the Owner notwithstanding such payment being made without his consent or authority.

Notwithstanding anything contained in the Contract, the Contractor is and shall remain solely and exclusively liable and responsible for:
supervision of the work, quality of the material used, method and process of working, conduct and behaviour of his employees, immediate and long term safety of his personnel and agents deployed by him, from time to time;

Over and above this, the Contractor shall indemnify the Owner and every member, officer and employee of the Owner, also the Engineer-in-Charge and his staff against all actions, proceedings, claims demands, costs and expenses whatsoever arising out of or in connection with the matters and elsewhere and all actions, proceedings, claims, demands, costs and expenses which may be made against the Owner for or in respect of or arising out of any failure by the Contractor in the performance of his obligations under the contract documents.
The Contractor will observe all the compliances with health, safety and environment procedures and norms prescribed by competent authorities and the Owner from time to time.

If the Owner is required by a court of law to pay compensation to any personnel employed and deputed by the Contractor under the provisions of the Workmen's Compensation Act, 1923, in particular under Section 12(i) thereof, the Owner shall be reimbursed by the Contractor such amount or, alternatively, the Owner may deduct such amount from any sum due or thereafter becoming due to Contractor from the Owner under the Contract or otherwise including from the retention money. The Owner shall not be obliged to contest any claim made against it under the under Sub-section 2 of Section 12 of the Workmen's Compensation Act, 1923,

except on written request by the Contractor and upon provision of full security by the Contractor for all costs which the Owner may become liable to pay as a consequence of contesting such claim.

30.0 SAFETY PRECAUTIONS:-

30.1 Contractor shall also follow the following safety precautions in addition to the safety precaution given in the General Conditions of Contract.

30.2 The contractor will ensure safety precautions in all stretches of the alignment that are parallel to the existing road where vehicular movements are frequent and in close proximity of the existing structures and other installations. Necessary measures have to be taken to ensure proper protection of the adjoining road and traffic on the road.

30.3 For works close to the road, structures, sheds, etc. all precautions will have to be taken for ensuring that during execution of the work, no damage is caused to the road, structures, sheds, etc., or it's ancillaries and also no obstruction is caused to the movement of the materials, vehicles or men.

30.4 The Contractor will also ensure that no damage is done to the drainage system and any other services / structures. Adequate measures have to be taken so as to allow free flow of water at Bridges and culverts.

30.5 Contractor shall observe due care to avoid damage to the Existing underground utilities/ services of all types while executing the work. However, in case of any damages caused due to negligence of the contractor, sub-contractor or for any reason whatsoever, the contractor shall make good the damages to the satisfaction of the owner at his own cost.

30.6 The contractor shall maintain proper cleanliness at site and clear the debris/ unwanted material at the sites after the completion of work or as per the

requirement of EIC.

30.7 Contractor to wear Safety Shoes, Helmet, safety masks, Safety Belt with Full Body Jacket (reflector radium), Safety Goggles, Harnesses, Hand gloves, Fall-back arrester on scaffolding whenever and wherever required as per the instruction of Engineer in charge.

30.8 Openings and edges at Height safety. Hard barricading, Soft barricading to be done where SCM part operations is in progress in the same space

30.9 Work permit system documented (Hot permit, Scaffolds, Confined space, Excavation etc.)

30.10 Integrated Electrical Safety Management System should be implemented to ensure compliance

30.11 Deployment of safety engineers/Safety qualified supervisor (from approved statutory institutions) to adhere site requirement.

30.12 Equipment health check-up should be checked. Third party inspection report to be submitted .Plug points of heavy appliances like - drilling machine, grinder, welding machine, etc. must be properly earthed and the power should be drawn only through a 3-pin plug socket with MCB.

30.13 First AID Treatment box should available at site

30.14 There should not be water logging on the floor.
30.15 Minimum 1 no. each 5kg ABC & CO2 (Fire Extinguisher) must be available at site before site work started

30.16 No labour should be allowed to stay in night and no cooking at site/mall premises should be allowed.

30.17 Overall, the contractor shall observe all necessary safety precautions to safeguard his

personnel, plant, machinery, other personnel, equipment and completed works at site. He will remain solely liable for any claims or damages arising out of non-compliance of such safety precautions and would indemnify the owner from any such claims or damages.

30.18 The Contractor shall comply with the entire safety policy, quality and program schedule to the complete satisfaction of the EIC. Any breach in programme schedule attributable to the contractor and non-adherence of safety & quality shall be viewed seriously. In case of non-adherence of the quality, the relevant portion of bill shall not be paid unless it is rectified as per agreed procedure to the satisfaction of the EIC. Recovery to the extent of 1% towards the safety & 1% towards the programme (for the reason attributable to the contractor) in interim stages will be made from the RA Bill for the month if the contractor is non-adhering to the safety & programme respectively. The release of such amount shall be subject to the compliances/corrective measures, as agreed with the EIC. Such recoveries shall not exceed the maximum 5% of the contract value including LD as stipulated elsewhere in order. Contractor shall have a safety supervisor appointed for the works who would conduct regular/daily compliances/corrective measures, as agreed with the EIC.

30.19 Contractor shall submit project specific Safety Plan and get the same approved by EIC by modifying the same as recommended before start of work. All such documents shall become part of this contract document as if it was issued along with this document

30.20 In case of any unsafe equipment used by contractor then the same will be forfeited & same will be allowed to use only after rectification

30.21 No wooden/iron ladder should be used at site. Only Aluminium ladder with rubber bush must be used while execution of work at site. For working at heights scaffolding material like Telescopic Scissors Lift &

Wrench Aluminium Ladder has to be used

30.22 All external fixed scaffolding for facade work should have internal ladder and platform with railing at all observatory level through-out the length of the facade

30.23 Necessary Safety Signage at site to be displayed.

30.24 Temporary railing for cutout's and Lift well if any during fitout.

30.25 The Contractor will have to adhere with the safety guidelines. The Owner reserves the right to penalize the contractor in case of repeated non adherence of Safety Norms and such penalties shall be limited to overall value of 5% including LD as stipulated elsewhere in this WO:

a. 1st incident - Rs. 5,000/-
b. 2nd incident - Rs. 10,000/-
c. 3rd incident - Rs. 15,000/- and
d. 4th incident - Rs. 20,000/- with show cause memo to Contractor.

If the contractor who is assigned to perform as per the said contract/WO Safety clauses is defaulter for the aforesaid stages repeatedly i.e. for (Sr.no a to d), the Owner reserves the right to terminate the services of contractor with immediate effect without any further notice.

31.0 TERMINATION OF THE CONTRACT:-

The contract can be terminated within the contract period at the discretion of the OWNER by giving written notice without assigning any reason thereof.

32.0 MISDEMEANOUR ON THE PART OF THE CONTRACTOR:-

32.1 In the event of any misdemeanour on the part of

the contractor or his involvement in unethical / corrupt practices or his attempt to unduly influence the Owner's / consultant's personnel for any reasons whatsoever, the Owner shall have full right to terminate the contract without any notice to the contractor and forfeit all the money payable to the contractor without prejudice to any other remedy available under the terms of contract, to complete the balance work at the risk and cost of the contractor.

32.2 Without prejudice to the Contractor's obligation to comply with all applicable laws relating to this Work ORDER, the Contractor shall not offer or give, or agree to give, to any employee, agent, servant or representative of the Owner or the PROJECT MANAGER any consideration of any kind as an inducement or reward for doing, refraining from doing, or for having done or refrained from doing, any act in relation to the obtaining or execution of this Work ORDER or any other Work ORDER with the Owner or for showing or refraining from showing favour of disfavour to any person in relation to this Work ORDER or any such Work ORDER. Where the Contractor or the Contractor's employees, servants, sub-Contractors, suppliers or agents of anyone acting on the Contractor's behalf, engages in conduct, prohibited by this clause in relation to this or any other Work ORDER with the Owner. The Owner has the right without prejudice to any other rights or remedies available as per the law to:

(a) Terminate the contract without any notice to the contractor and forfeit all the money payable to the Contractor without prejudice to any other remedy available under the terms of contract, to complete the balance work at the risk and cost of the contractor.

(b) Recover in full from the Contractor any other loss sustained by the Owner in consequence of any breach of this clause, whether or not the Work ORDER has been terminated.

33.0 DEFECTS LIABILITY:-

The Contractor shall guarantee the Work for a period of 12 (Twelve) months (Period of Liability) OR as specified in this WO from the date of completion of work as per the final completion certificate of the Engineer In charge. Any damage or defect that may arise or lie undiscovered at the time of issue of completion certificate, connected in any way with the equipment or materials supplied by him or in the workmanship shall be rectified or replaced by the Contractor at his own expense as deemed necessary by the Engineer-in-Charge or in default, the Engineer- in-Charge may cause the same to be made good by other workmen and deduct expenses (of which the certificate of Engineer-in-Charge shall be final) from any sums that may be then or at any time thereafter, become due to the Contractor or from his Retention money or the proceeds of sale thereof, or of a sufficient portion thereof.

If the Contractor feels that any variation in work or in quality of materials or proportions would be beneficial or necessary to fulfil the guarantees called for, he shall bring this to the notice of the Engineer-in-Charge in writing.

34.0 JURISDICTION:-

The contract shall be governed by and constructed according to the laws in force in INDIA. The Contractor hereby submits to the jurisdiction of the courts situated at MUMBAI for the purposes of actions and proceedings arising out of the contract and the courts at MUMBAI only will have the jurisdiction to hear and decide such actions and proceedings.

GENERAL CONDITIONS OF CONTRACT
SECTION I

1.0 Definition of Terms

All the headings of the clauses in these General Conditions of Contract or otherwise in any Contract documents are intended solely for the purpose of giving the broad indication of the contents of the clause and not as a summary thereof.
Unless otherwise specifically stated, the masculine gender shall include the feminine and/or neuter gender and vice- versa and singular shall include plural and vice-versa.
In the Contract document as herein defined where the context so admits, the following words and expressions will have the following meanings:

1.1 The "Owner" shall mean the Reliance, their successors and assigns from time to time.
1.2 The "Engineer-In-Charge" shall mean the persons designated as such by the Owner and shall include those who are expressly authorised by him to act for and on his behalf for Operation of the Contract.
"Construction Manager" shall have the same meaning as "The Engineer-in-charge".
1.3 The "Consultant" means the Detailed Engineering Consultant (DEC) engaged by the Owner.
1.4 The "Work" shall mean the works to be executed in accordance with the Contract or part there of as the case may be and shall include all extra, additional, altered or substituted Works as required for the purpose of the Contract.
1.5 The "Site" means the area on which the permanent works are to be executed or carried out and any other places provided by the Owner for the purpose of the Contract.
1.6 "The Scope of Work" shall mean the totality of the work envisaged in the Contract and shall include all

plant, equipment, appliances, labour, material of whatsoever in nature for the use, in or for execution, completion, operation or maintenance of the Work.
1.7 The "Contractor" means the person or the persons, firm or Company whose tender has been accepted by the Owner and includes the Contractors legal representative, his successor and permitted assigns.
1.8 The "Sub Contractor" means any person or firm or Company (other than the contractor) to whom any part of the work has been entrusted by the Contractor, with the written consent of the Engineer-in-Charge, and the legal representatives, successors and permitted assigns of such person, firm or Company.
1.9 The "Contract" shall mean the Agreement between the Owner and the Contractor for the execution of the Works including therein all Contract Documents.
1.10 The "Supplier & Vendor" shall mean the Contractor.
1.11 The "Buyer" shall mean the Owner.
1.12 The "Tender" means the tender submitted by the Contractor for acceptance by the Owner.
1.13 The "Specifications" shall mean the various technical specifications attached to and referred in the Tender Documents/Contract. It shall also include the latest edition of relevant Indian standard specifications published before entering into Contract.
1.14 The "Drawings" shall include maps, plans and tracings or prints thereof with any modifications approved in writing by the Engineer-in-Charge and such other drawings, as many, from time to time be furnished or approved in writing by the Engineer-in-Charge.
1.15 The "Schedule of Rates" means the schedule of rates annexed to the Work Order/Contract/Purchase Order and shall include all remunerations payable to the Contractor for any work determined in accordance with the conditions herein.
1.16 The "Agreed Variation" shall mean the statement of agreed variation annexed to the work Order/Contract/Purchase order.
1.17 The "Alteration Order" means an order given in writing by the Owner to effect additions to or deletions from and alteration in the Work.

1.18 The "Order and Instructions" shall mean any written order or instructions given by the Owner within the scope of their respective powers in terms of the Contract.

1.19 The "Total Contract Value" shall mean the total value of the Contract thereof including all the addition to or deletion from and alterations for any particular Work.

1.20 The "Completion period" means the period or date specified in the Work Order/Contract or the date mutually agreed upon for execution, completion, operation or maintenance of the work.

1.21 The "Progress Schedule" shall mean the approved progress schedule, as agreed upon by the Owner and the Contractor being prepared for separate job sites and/or group of job sites or separate work and/or group of works.

1.22 The "Contract Documents" shall mean the documents forming the tender and acceptance thereof together with the documents to refer to herein, including these conditions, specifications, designs, drawings and instructions, issued from time to time and all these documents taken together, shall be deemed to form one contract and shall be complimentary to another.

1.23 The "Completion Certificate" shall mean the certificate to be issued by the Engineer-in-Charge when the works have been completed to his satisfaction.

1.24 The "Period of Liability" in relation to the Work means the specified period from the date of completion as stipulated in the Contract, during which the Contractor stands responsible for rectifying all defects that may appear in the Work(s).

1.25 The "Running Account Bill" means the Bill(s) submitted by the Contractor on monthly basis for the work(s) carried out during the immediately preceding month/ period.

1.26 The "Final Certificate" in relation to the work shall mean the certificate regarding the satisfactory compliance of the various provisions of the Contract by the Contractor, issued by the Engineer-in-Charge after the period of liability is over.

1.27 CENTRAL TAX (CT) means the Central Goods and Services Tax levied under and at such rates as the Central Goods and Services Tax Act, 2017, rules, notifications, and circulars thereunder for the time being in effect provide for.
1.28 COMPENSATION CESS means the cess levied under Goods and Service Tax (Compensation to States) Act 2017, rules, notifications and circulars thereunder for the time being in effect provide for.
1.29 GST means the applicable Goods and Service Tax (i) (a) CENTRAL TAX, and (b) STATE TAX or UNION TERRITORY TAX, or (ii) INTEGRATED TAX; (c) COMPENSATION CESS, and (d) any other levy payable in accordance with and as set forth in the GST LAW.
1.30 GST AMOUNT means the amount of GST required to be paid by a taxable person under the applicable GST LAW with respect to the SERVICES supplied or to be supplied in compliance with the GST LAW.
1.31 GST LAW means the Central Goods and Services Tax Act, 2017, the State Goods and Services Tax Acts passed by the States in the Republic of India, Integrated Goods and Services Tax Act, 2017, the Union Territory Goods and Services Tax, 2017, the Goods and Service Tax (Compensation to States) Act 2017, or any other statute or ordinance issued as a part of GST regime and the rules, notifications, and circulars under each of the foregoing for the time being in effect, as applicable to the supply of GOODS or SERVICES.
1.32 GSTN means the Goods and Services Network established under or in accordance with the APPLICABLE LAW.
1.33 INTEGRATED TAX (IT) means the Integrated Goods and Services Tax levied under and at such rates the Integrated Goods and Services Tax Act, 2017, rules, notifications, and circulars thereunder for the time being in effect provide for.
1.34 PLACE OF SUPPLY with respect to SERVICES means the place of supply as determinable in accordance with the GST LAW.
1.35 STATE TAX (ST) means the State Goods and Services Tax levied under and at such rates the State Goods and Services Tax Act, 2017, rules, notifications, and

circulars thereunder for the time being in effect provide for.
1.36 UNION TERRITORY TAX (UTT) means the Union Territory Goods and Services Tax levied under and at such rates the Union Territory Goods and Services Tax, 2017, rules, notifications, and circulars thereunder for the time being in effect provide for.

SECTION II

1.0 GENERAL INFORMATION

1.1 Scope of Work
The scope of work is defined in the Special Conditions of Contract and Specifications. The Contractor shall provide all necessary materials, equipment, labour etc. for the execution and maintenance of the work till final certificate is issued unless otherwise specifically mentioned. All materials that go with the work shall be approved in writing by Engineer-in-Charge prior to the procurement and use.

1.2 Water
The Owner at his own discretion and convenience shall make available water supply free of cost to the Contractor for construction purposes (including testing & flushing) as far as possible at one point nearer to the work spot from where the Contractor will make his own arrangements at his cost for the temporary distribution. The temporary lines will be removed at his own cost forthwith after the completion of works or if there is any hindrance caused to other works due to alignment of these lines the Contractor will reroute or remove the lines at his own cost.

1.3 Power Supply
The Owner at his own discretion and convenience shall make available electric power supply free of cost, to the Contractor for construction purposes as far as possible at one point at the nearest Sub Station from where the Contractor will make his own arrangements at

his own cost for the temporary distribution. The temporary lines will be removed at his own cost forthwith after the completion of works or if there is any hindrance caused to other works due to alignment of these lines the Contractor will reroute or remove the lines at his own cost. All works shall be carried out as per International Electricity Act (IEA) regulations.

1.4 Land for Contractor's Site establishments(Not for labour/Staff accommodation etc):
The Owner at his own discretion and convenience shall make available, required land free of cost for temporary site establishments of the Contractor.

1.5 Telephones
The Contractor may make use of the Owner's telephone, fax and telex facilities on prior approval of Owner. The cost of all such facilities including overheads as decided by the Owner from time to time shall be debited and recovered from the monthly Running Account bill of the Contractor.

1.6 Coordination of Work
The Engineer-in-Charge shall coordinate the works of various agencies engaged at site to ensure minimum disruption of work carried out by different agencies. It shall be the responsibility of the Contractor to plan and execute the work strictly in accordance with instructions of the Engineer-in-Charge to avoid hindrance to the work being executed by other agencies.

1.7 The infrastructure facilities mentioned in clause 1.2 to 1.5 above shall be made available to the Contractor by the Owner after the Engineer-In-charge certifies in writing that the above facilities are required by the Contractor. The Engineer-In-charge shall also certify the estimated quantities before start up of the work and the quantities actually used every month by the Contractor.

1.8 Labour Colony :
The Contractor shall make his own arrangements for

other amenities etc. for his labour colony at his cost at location away from site premises.

SECTION III

GENERAL OBLIGATIONS

1.0 Interpretation of Contract Documents

1.1 The Schedule of rates, Technical documents & Special terms of contract shall prevail over those of any other documents forming part of the contract. Several documents forming the contract are to be taken as mutually explanatory. Should there be any discrepancy, inconsistency, error or omission in the contracts or any of them the matter may be referred to Engineer-in-Charge who shall give his decisions and issue to the Contractor instructions in writing directing in what manner the work is to be carried out. The decision of the Engineer-in-Charge shall be final and conclusive and the Contractor shall carry out work in accordance with this decision.

1.2 Works shown upon the drawing but not mentioned in the specifications or described in the specifications without being shown on the drawings shall nevertheless be held to be included in the same manner as if they had been specifically shown upon the drawings and described in the specifications.

1.3 Headings and Marginal Notes
All headings and marginal notes to the clauses of these General Conditions of Contract or to the specifications or to any other tender document are solely for the purpose of giving a concise indication and not a summary of the contents thereof, and they shall never be deemed to be part thereof or be used in the interpretation or construction thereof of the contract.

1.4 Singular and Plural, Gender

In these contract documents unless otherwise stated specifically, the singular shall include the plural and vice versa wherever the context so requires. Words importing persons shall include relevant incorporated companies/registered associations/body of individuals/firm of partnership/local authority.

2.0 Special Conditions of Contract

2.1 Special Conditions of Contract shall be read in conjunction with the General Conditions of Contracts, specifica-tions of Work, Drawings and any other documents forming part of this contract wherever the context so requires.

2.2 Notwithstanding the sub-division of the documents into these separate sections and volumes every part of each shall be deemed to be supplementary to and complementary of every other part and shall be read with and into the contract so far as it may be practicable to do so.

2.3 Where any portion of the General Conditions of Contract is repugnant to or at variance with any provisions of the Special Conditions of Contract, then, unless a different intention appears the provisions of the Special Conditions of Contract shall be deemed to over-ride the provisions of the General Conditions of Contract and shall to the extent to such repugnance, or variations, prevail.

2.4 Wherever it is mentioned in the specifications that the Contractor shall perform certain work or provide certain facilities, it is understood that the Contractor shall do so at his cost.

2.5 The materials, design and workmanship shall satisfy the relevant Indian Standards,the job specifications contained herein and codes referred to. Where the job specifications stipulate requirements in addition to those contained in the standard codes and specifications, these additional requirements shall

also be satisfied.

3.0 Time of Performance

3.1 Time is the essence of this contract. The work covered by this contract shall be commenced within fifteen days after the receipt of the letter of acceptance of tender and be completed in stages on or before the dates as mentioned in the time schedule of completion of work.

3.2 Time Schedule of Construction

Contractor shall prepare a detailed weekly / monthly construction program jointly with the Engineer-in-Charge within ten days of receipt of Letter of Intent / Letter of acceptance of tender. The work shall be executed strictly as per the time schedule given in the documents. The period of construction given includes the time required for testing, rectifications, if any, retesting and completion in all respects in accordance with the Contract and to the entire satisfaction of the Engineer-in-Charge.

3.3 Monthly/weekly construction targets will be drawn up by the Contractor based on availability of work fronts and the construction program as per 3.2 above indicating the resources necessary to achieve these targets. The Contractor shall scrupulously adhere to these targets and program and shall deploy personnel., construction equipment and aids as agreed or as may be necessary. Contractor shall also procure all its own materials under the scope of supply in proper time so that no activity of work is adversely effected for want of material and to achieve the targets/programs. In all matters concerning setting out targets, activities, priorities for the weekly and monthly programs and the progress achieved, the decision of the Engineer-in-Charge will be final and binding on the Contractor. Contractor shall deploy planning engineer who shall carryout only planning function and shall not be utilised for supervision work.

Contractor shall have sufficient number of supervising staff as per site organisation chart. If

required Contractor shall mobilize additional manpower at no extra cost to the Owner.
Contractor shall also give chart for labour force intended to be deployed to the Engineering-in-charge, or weekly basis.

3.4 Reports & records
3.4.1 The Contractor shall, from time to time maintain at each job site (in addition to any records or registers required to be maintained by the Contractor under any law, statue, rule or regulation having the force of law) such records and registers as the Engineer-in charge shall or may require the Contractor to keep and/or maintain from time to time.
3.4.2 In addition to any other records or registers to be maintained by the Contractor from time to time and/or reports to be furnished by the Contractor, the Contractor shall daily or otherwise as may be prescribed by Engineer-in charge or site Engineer, submit to the Site Engineer a Progress Report of all work done and/or progress achieved by the Contractor within the proceeding day or the period of last report, as the case may be.
3.4.3 Notwithstanding the above, the Contractor shall submit the following reports on regular basis :-
a) Daily Report of number of employees/labour with classification of their jobs/trades;
b) Weekly Progress Report on each Friday containing the progress of work, schedule completion time, variance from the schedule and the revised schedule of completion and detailing actual or potential delay in any work classifying the reasons of delay.
c) Daily Report of critical activities.
3.4.4 All records and registers of the Contractor shall be produced to the Engineer-in charge or his authorised representative in case of demand for inspection and verification.
3.4.5 The receipt and/or acceptance of any such report by the Site Engineer shall be without prejudice to the full rights and remedies of the Owner and obligations/liabilities of Contractor under the Contract, and shall not anywise operate as an estoppels

against Owner by reason only of the fact that no notice or objection was taken of any information contained in any such report, nor shall any statement in any such report be deemed to be correct merely by virtue of the existence of such statement, and it being uncontroverted by the Owner.

4.0 Force Majeure

If during tenure of the contract, any completed portion of the work is destroyed or damaged by fire (not caused by any willful act of the contractor), earthquake, tempest, flood, lighting, violence of any army or mob or enemies of the country or by irresistible force of the orders of any statutory authorities or famine or terrorist attacks, war (If declared or not), hostilities, invasion, act of foreign enemies, rebellion, revolution, insurrection, military or usurped power, strike, civil war, riot, commotion or disorder or any other irresistible force, any other natural calamity so as to render the portion of work completed unfit for the purpose for which it was constructed for 30 days or beyond, OWNER shall have option to terminate the contract, if such Force Majeure continues for a period of 30 days or beyond. Notwithstanding anything contained hereinabove, neither party to this contract shall be liable to other for discharging of its obligations under the terms and conditions of the agreement where, from the date of issue of this Contract Agreement till the completion of work, In case of delay by a government agency, local authority or statutory undertaker in carrying out work or granting the consents and approvals in pursuance of its statutory obligations in relation to the Initial Works or exercise after executing this contract agreement any statutory authority restricts the availability or use of labour or prevents CONTRACTOR in obtaining goods, materials, fuel or energy for a period of 30 days or beyond, OWNER shall have the right to terminate the contract with immediate effect. Similarly, the Contractor is also entilted for Termination of this Contract in case he disagrees to

the revised time and compensation offered by OWNER post Force Majeure. The Contractor shall be entitled for his expenses incured during the period of his non performance of his works due to Force Majeure.
In cases of termination of the contract agreement by either party, the contractor shall be paid appropriately.
In cases of termination of the contract agreement as mentioned hereinabove, CONTRACTOR shall return advances paid to him by OWNER along with handing over of site.

5.0 Owner not Bound by Personal Representations
The Contractor shall not be entitled to any increase on the schedule rates or any other right or claim whatsoever by reason of any representation, explanation or statement or alleged representation, promise or guarantees given or alleged to have been given to him by any person.

6.0 Contractor's Office at Site
The Contractor shall provide and maintain an office at the site for the accommodation of his agent and staff and such office shall be open at all reasonable hours to receive instructions, notices or other communications.

7.0 Contractor's Subordinate Staff and Their Conduct
7.1 The Contractor, on or after award of the work shall name and depute a qualified engineer having sufficient experience in carrying out work of similar nature, to whom the equipments, materials, if any shall be issued and instructions for works given. The Contractor shall also provide to the satisfaction of the Engineer-in-Charge sufficient and qualified staff to superintend the execution of the works, competent sub-agents, foremen and leading hands including those specially qualified by previous experience to supervise the types of works comprised in the contract in such manner as will ensure work of the best quality, expeditious working. Whenever in the opinion of the Engineer-in-Charge additional properly qualified supervisory staff is considered necessary, they shall

be employed by the Contractor without additional to Owner charge on account thereof. The Contractor shall ensure to the satisfaction of the Engineer-in-Charge that sub-Contractors, if any, shall provide competent and efficient supervision, over the work entrusted to them.

7.2 The Contractor shall be responsible for the proper behavior of all the staff, foremen, workmen, and others, and shall exercise a proper degree of control over them and in particular and without prejudice to the said generality, the Contractor shall be bound to prohibit and prevent any employees from trespassing or acting in any way detrimental or prejudicial to the interest of the community or of the properties or occupiers of land and properties in the neighborhood and in the event of such employee so trespassing, the Contractor shall be responsible therefore and relieve the Owner of all consequent claims or actions for damages or injury or any other grounds whatsoever. The decision of the Engineer-in-Charge upon any matter arising under this clause shall be final.

7.3 If and whenever any of the Contractor's agents, sub- agents, assistants, foremen or other employees shall in the opinion of Engineer-in-Charge be guilty of any misconduct or be incompetent or insufficiently qualified or negligent in the performance of their duties or that in the opinion of the Owner or the Engineer-in-Charge, it is undesirable for administrative or any other reason for such person or persons to be employed in the works, the Contractor, if so directed by the Engineer-in-Charge, shall at once remove such person or persons from employ-ment thereon. Any person or persons so removed from the works shall not again be employed in connection with the works without the written permission of the Engineer-in-Charge. Any person so removed from the works shall be immediately replaced at the expense of the Contractor by a qualified and competent substitute. Should the Contractor be requested to repatriate any person removed from the works he shall do so and shall

bear all costs in connection herewith.

7.4 If and when required by the Owner all Contractor's personnel entering upon the Owner's premises shall be properly identified by badges of a type acceptable to the Owner which must be worn at all times when on Owner's premises.

8.0 Sub-letting of Work
8.1 No part of the contract (except Labor contracts) nor any share or interest therein shall in any manner or degree be transferred, assigned or sublet by the Contractor directly or indirectly to any person, firm, or corporation whosoever except as provided for in the succeding sub-clause, without the prior consent in writing, of the Owner.

8.2 List of Sub-Contractors to be Supplied
At the commencement of every month the Contractor shall furnish to the Engineer-in-Charge list of all sub-Contractors or other persons or firms engaged by the Contractor and working at the site during the previous month with particulars of the general nature of the sub-contract or works.

8.3 No Remedy for Action Taken under this Clause
No action taken by the Owner under the clause shall relieve the Contractor of any of his liabilities under the contract or give rise to any right to compensation, extension of time or otherwise, failing which the Owner shall have the right to remove such sub-Contractors from the site.
9.0 Power of Entry

9.1 If the Contractor shall not commence the work in the manner previously described in the contract documents or if he shall at any time in the opinion of the Engineer-in-Charge.

9.2 Fail to carry out the works in conformity with the contract documents, or

9.3 Fail to carry out the works in accordance with the time schedule, or

9.4 Substantially suspend work or the works for a period of seven days without prior written consent from the Engineer-in Charge, or

9.5 Fail to carry out and execute the works in accordance with the Contract and to the satisfaction of the Engineer-in-Charge, or

9.6 Fail to supply sufficient or suitable constructional plant, temporary works, labour, materials or things, or

9.7 Commit or suffer, or permit any other breach of any of the provisions of the contract on his part to be performed or observed or persist in any of the above mentioned breaches of the contract for seven days, after notice in writing shall have been given to the Contractor by the Engineer-in-Charge requiring such breach to be remedied, or

9.8 If the Contractor abandons the works, or

9.9 If the Contractor during the continuance of the Contract becomes bankrupt, make any arrangement or compo-sition with his creditors, or permit any execution to be levied or go into liquidation whether compulsory or voluntary not being merely a voluntary liquidation for the purpose of amalgamation or reconstruction.

10.0 Notices

Any notice hereunder may be served on the Contractor or his duly authorised representative at the job site or may be served by registered mail direct to the address furnished by the Contractor. Proof of issue of any such notice could be conclusive of the Contractor having been duly informed of all contents therein.

11.0 Rights of Various Interests

11.1 The Owner reserves the right to distribute the work between more than one Contractor. The Contractor shall cooperate and afford other Contractors reasonable opportunity for access to the works for the carriage and storage of materials and execution of their works.

11.2 Wherever the work being done by any department of the Owner or by other Contractors employed by the Owner is contingent upon work covered by this contract, the respective rights of the various interests involved shall be determined by the Engineer-in-Charge to secure the completion of the various portions of the work in general harmony.

12.0 Right of Owner to Determine/Terminate Contract
Owner shall, at any time, be entitled to determine and terminate the contract, if in the opinion of the Owner the cessation of the work becomes necessary owing to any cause whatsoever, in which case the cost of approved materials at the site at the purchased rates as verified and approved by Engineer-in-Charge and of the value of the work done to date by the Contractor shall be paid for in full at the rates specified in the contract. A notice in writing from the Owner to the Contractor of such determination and termination and the reason, therefore shall be the conclusive proof of the fact that the contract has been so determined and terminated by the Owner.

13.0 Patents, Royalties & Indemnity
The Contractor, if licensed under any patent covering equipment, machinery, materials or compositions of matter to be used or supplied or methods and process to be practiced or employed in the performance of this contract, agrees to pay all royalties and license fees which may be due with respect thereto. If any equipment, machinery, materials composition of matters, to be used or supplied or methods and processes to be practiced or employed in the performance of this contract, is covered by a patent under which the Contractor is not licensed then the Contractor before supplying or using the equipment,

machinery, materials, composition method or processes shall obtain such licenses and pay such royalties and license fees as may be necessary for performance of this contract. In the event the Contractor fails to pay any such royalty or obtain any such license, any suit for infringement of such patents which is brought against the Contractor or the Owner as a result of such failure will be defended by the Contractor at his own expense and the Contractor will pay any damages and costs awarded in such suit. The Contractor shall promptly notify the Owner if the Contractor has acquired knowledge of any patent under which a suit for infringement could be reasonably brought because of the use by the Owner of any equipment, machinery, materials, process, methods to be supplied hereunder.

The Owner shall indemnify and save harmless the Contractor from any loss on account of claims against Contractor for the contributory infringement of patent rights arising out and based upon the claim that the use by the Owner of the processincluded in the design prepared by the Owner and used in the operation of the plant infringes on any patent right. With respect to any Sub Contract entered into by Contractor pursuant to the provisions of the relevant clause hereof, the Contractor shall obtain from the Sub Contractor an undertaking to provide the Owner with the same patent protection that Contractor is required to provide under the provisions of this clause.

14.0 Liens

If, at any time, there should be evidence or any lien or claim for which the Owner might have become liable and which is chargeable to the Contractor, the Owner shall have the right to retain out of any payment then due or thereafter to become due an amount sufficient to completely indemnify the Owner against such lien or claim and if such lien or claim be valid the Owner may pay and discharge the same and deduct the amount so paid from any money which may be or may become due and payable to the Contractor. If any lien or claim remain unsettled after all payments are made, the Contractor shall refund or pay to the Owner all

moneys that the latter may be compelled to pay in discharging such lien or claim including all costs and reasonable expenses.

15.0 Arbitration

a) Prior to the initiation of any action or proceeding permitted by this Agreement to resolve any disputes or differences between the Parties, Parties shall make a good faith effort to amicably resolve any such disputes.
b) All dispute or differences arising between Parties out of or in relation to construction, meaning, scope, operation or effect of this Agreement or validity or breach thereof which the Parties are unable to settle using the foregoing procedure within fifteen (15) days from its occurrence, or such longer time as mutually agreed, shall be submitted for final settlement to arbitration under the provisions of the Arbitration and Conciliation Act, 1996, and any statutory modification or any re-enactment thereof.
c) The arbitral tribunal shall consist of three members. Each party shall nominate one (1) arbitrator. The two (2) arbitrators appointed by the Parties shall appoint a third arbitrator within thirty (30) days after the other Party has notified the requesting Party of the appointment of the other Party's arbitrator. In case the Parties are unable to appoint their respective arbitrators or the arbitrators appointed by the Parties are unable to appoint a third arbitrator within thirty (30) days, then the appointment of the relevant arbitrator(s) shall be made in accordance with the Arbitration and Conciliation Act, 1996.
d) The arbitration proceedings shall be held in Mumbai, India. The arbitration proceedings shall be conducted in English language. The decision of the arbitrator(s) shall be final, binding and non-appealable except in case of manifest error. Judgment upon the award may be rendered in any court

having competent jurisdiction thereof, or any application may be made to such court for judicial acceptance of the award and an order of enforcement, as the case may be.

Any award of the arbitration tribunal shall include the reasons for such award as per the Arbitration and Conciliation Act 1996.

In those instances where the dispute or difference referred to arbitration relates to or involves any matter or thing in respect of which the reasonable decision, opinion or determination of the Owner or Engineer-in-Charge is final and binding on Parties in terms of the Contract, such decision, opinion and/or determination as the case may be, shall be final, binding, and not subject to arbitration.
Each Party shall bear its own costs and expenses of arbitration.

The arbitrators shall have, in relation to the arbitration proceeding, the power to give interim orders, awards, injunctions and directions.

It is distinctly agreed and understood that the existence of any claim or dispute will not entitle the Contractor to stop or delay the Work and Contractor shall continue to perform the Work in accordance with the provisions of this Contract and in accordance with Owner's instructions with all due diligence and dispatch and both the Owner and Contractor shall perform all their obligations under the Contract.

This Clause shall survive any termination, expiry or nullity of this Contract.

16.0 Jurisdiction

The contract shall be governed by and constructed according to the laws in force in INDIA. The Contractor hereby submits to the jurisdiction of the courts

situated at MUMBAI for the purposes of actions and proceedings arising out of the contract and the courts at MUMBAI only will have the jurisdiction to hear and decide such actions and proceedings.

17.0 Secrecy

The Contractor shall take all necessary steps to ensure secrecy of information obtained in the course of the execution of the contract which would or might be directly or indirectly of use to any business competitors of the Owner.

Any breach of the aforesaid conditions shall entitle the Owner to cancel the Contract unilaterally without forfeiture of the Owner's rights under any other provisions of this Contract.

Contractor shall sign secrecy agreement based on Owner's discretion

SECTION IV

PERFORMANCE OF WORK

1.0 Execution of Works

All the works shall be executed in strict conformity with the provision of the Contract documents and with such explanatory detailed drawings, specifications and instructions as may be furnished from time to time to the Contractor by the Engineer-in-Charge whether mentioned in the Contract or not. The Contractor shall be responsible for ensuring that works throughout are executed in the most substantial, proper and workmanlike manner with the quality of material and workmanship strictly in accordance with the specifications and to the entire satisfaction of the Engineer-in-Charge.

2.0 Coordination and Inspection of Work

The coordination and inspection of the day-to-day work under the Contract shall be the responsibility of the Engineer-in- Charge or his authorised representative.

The written instructions regarding any particular job will normally be passed by the Engineer-in-Charge or his authorised representative. A work order book will be maintained by the Contractor for each sector in which the aforesaid written instructions will be entered. These will be signed by the Contractor or his authorised representative by way of acknowledgement within 12 hours of the instructions.

3.0 Work in Monsoon and Dewatering
3.1 The completion of the work may entail working in the monsoon also. The Contractor must maintain a minimum labour force as may be required for the job and plan and execute the construction and erection according to the prescribed schedule. No extra rate will be considered for such work in monsoon.
3.2 During monsoon and other period, it shall be the responsibility of the Contractor to keep the construction work site free from water at his own cost.

4.0 Work on Sundays and Holidays
Rates shall be inclusive of working on Sundays and Holidays

5.0 House Keeping
The Contractor shall at all times keep his work spots, site office and surroundings clean and tidy, free from dust, rubbish, scrap, surplus material and unwanted tools and equipments. All scaffolding and temporary structures shall be removed as soon as the job for which these are intended is complete. The welding and other electrical cables shall be routed to allow safe traffic by all concerned. All equipment and material to be taken inside the plant building shall be cleaned thoroughly before taking them inside. The erected equipment and piping shall also be kept clean by regular cleaning or by following protective methods. The Contractor shall provide adequate staff for above purpose. The Owner envisages the requirement of separate and dedicated gang for in field and shop for this work. In addition, as the work will be parallel with civil works, some amount of dewatering/mopping is

also envisaged.
Owner has right to stop work if the Contractor fails to improve upon the house keeping as per Owner's HSE guidelines after having been notified.

6.0 General Conditions for Construction and Erection Work

6.1 The working time at works site is 48 hours per week. Overtime work is permitted in cases of need and the Owner will not compensate the same. Shift working at 2 or 3 shifts per day will become necessary and the Contractor should take this aspect into consideration for formulating his rates for Tender. No extra claims shall be entertained by the Owner on this account.

6.2 The Contractor must arrange for the placement of workers in such a way that the delayed completion of the work or any part thereof for any reason whatsoever will not affect their proper employment

7.0 Drawings to be Supplied by the Owner

7.1 Where drawings are attached with tender or Contract, these shall be for the general guidance of the Contractor to enable him to visualise the type of work contemplated and scope of work involved. The Contractor will be deemed to have studied the drawings and formed an idea about the work involved.

7.2 Detailed working drawings on the basis of which actual execution of the work is to proceed, will be furnished from time to time during the progress of the work. The Contractor shall be deemed to have gone through the drawings supplied to him thoroughly and carefully and in conjunction with all other connected drawings and bring to the notice of the Engineer-in-Charge discrepancies if any, therein before actually carrying out the work.

7.3 Copies of all detailed working drawings relating to the works shall be kept at the Contractor's office on the site and shall be made available to the Engineer- in-Charge at any time during the execution of

Contract. The drawings and other documents issued by the Owner shall be returned to the Owner on completion of the works.

8.0 Setting Out Works

8.1 The Engineer-in-Charge shall furnish the Contractor with only the four corners of the work site and a level bench mark and the Contractor shall set out the works and shall provide an efficient staff for the purpose and shall be solely responsible for the accuracy of such setting out.

8.2 The Contractor shall provide, fix and be responsible for the maintenance of all stakes, templates, level marks, profiles and other similar things and shall take all necessary precautions to prevent their removal or disturbance and shall be responsible for the consequence of such removal or disturbance should the same take place and for their efficient and timely reinstatement. The Contractor shall also be responsible for the maintenance of all existing survey marks, boundary marks, distance marks and centre line marks, either existing or supplied and fixed by the Contractor. The works shall be set out to the satisfaction of the Engineer-in-Charge. The approval thereof or joining with the Contractor by the Engineer-in-Charge in setting out the work, shall not relieve the Contractor of any of his responsibilities.

8.3 Before beginning the works, the Contractor shall at his own cost, provide all necessary reference and level posts, pegs, bamboos, flags, ranging rods, strings, booths and other materials for proper layout of the work in accordance with the scheme for bearing marks acceptable to the Engineer-in-Charge. The centre, longitudinal or face lines and cross lines shall be marked by means of small masonry pillars. Each pillar shall have distinct mark at the centre to enable theodolite to be set over it. No work shall be started until all these points are checked and approved by the Engineer-in-Charge in writing but such approval shall not relieve the Contractor of any of his

responsibilities. The Contractor shall also provide all labour, material and other facilities, as necessary, for the proper checking of layout and inspection of the points during construction.

8.4 Pillars bearing geodetic marks located at the sites of units of works under construction should be protected and fenced by the Contractor.

8.5 On completion of works, the Contractor must submit the geodetic documents according to which the work was carried out.

9.0 Responsibility for Level and Alignment
The Contractor shall be entirely and exclusively responsible for the horizontal and vertical alignment, the levels and correctness of every part of the work and shall rectify effectually any errors or imperfections therein. Such rectifications shall be carried out by the Contractor, at his own cost, when instructions are issued to that effect by the Engineer-in-Charge.

10.0 Materials to be Supplied by Contractor
The contactor shall procure and provide the whole of the materials required for the construction including Steel,M.S. rods, wires, cement and other building materials, tools, tackles, construction plant and equipment for the completion and maintenance of the works except the materials which will be issued by the Owner wherever applicable and shall make his own arrangement for procuring such materials and for the transport thereof. The Owner may give necessary recommendation to the respective authority if so desired by the Contractor but assumes no further responsibility of any nature. All material procured by Contractor shall bear ISI stamp or equivalent standards and are of reputed make. All procurement activities shall be as per guidelines issued by Owner. All Purchases to be made from GST registered parties only

11.0 Stores Supplied by the Owner

If the Contract provides for the use of any material to be supplied from the Owner's stores the Contractor shall be bound to use such materials for the purpose of this Contract only. All materials so supplied to the Contractor shall remain the absolute property of the Owner and shall not be removed on any account from the site of the work, and shall be at all times open for inspection to the Engineer-in- Charge. Any such materials remaining unused at the time of the completion or termination of the Contract or at any time during the execution of Contract shall be returned to the Owner's stores or at a place as directed by the Engineer-in- Charge in perfectly good condition at Contractor's cost.

12.0 Materials Obtained from Dismantling

If the Contractor in the course of execution of the work is called upon to dismantle any part for reasons other than those stipulated in Clause 21.0 hereunder, the materials obtained in the work of dismantling etc., will be considered as the Owner's property and will be disposed of to the best advantage of the Owner.

13.0 Articles of Value Found

All gold, silver and other minerals of any description and all precious stones, coins, treasure, relics, antiquities and other similar things which shall be found in, under or upon the site, shall be the property of the Owner and the Contractor shall duly preserve the same to the satisfaction of the Engineer-in-Charge and shall from time to time deliver the same to such person or persons indicated by the Owner.

14.0 Discrepancies between Instructions

Should any discrepancy occur between the various instructions furnished to the Contractor, his agents or staff or any doubt arise as to the meaning of any such instructions or should there be any misunderstanding between the Contractor's staff and the Engineer-in-Charge's staff, the Contractor shall refer

the matter immediately in writing to the Engineer-in-Charge whose decision thereon shall be final and conclusive and no claim for losses alleged to have been caused by such discrepancies between instructions, doubts, or misunderstanding shall in any event be admissible.

15.0 Alterations in Specifications and Designs and Extra Works

15.1 The Engineer-in-Charge shall have power to make any alterations in, omission from, additions to or substitutions for, the original specifications, drawings, designs and instructions that may appear to him to be necessary or advisable during the progress of the work and the Contractor shall be bound to carry out the such altered/extra/new items of work in accordance with any instructions which may be given to him in writing signed by the Engineer-in-Charge, and such alterations, omissions, additions or substitutions shall not invalidate the Contract and any altered, additional or substituted work which the Contractor may be directed to do in the manner above specified as part of the work shall be carried out by the Contractor on the same conditions in all respects on which he agreed to do the main work. The time for completion of work may be extended for the part of the particular job at the discretion of the Engineer-in-Charge, for only such alterations, additions or substitutions of the work, as he may consider as just and reasonable. The rates for such additional, altered or substituted work under this clause shall be worked out in accordance with the following provisions :

(i) If the rates for the additional, altered or substituted work are not specifically provided in the Contract for the work, the rates will be derived from the rates for similar class of work as are specified in the Contract for the work. The opinion of the Engineer-in-Charge, as to whether or not the rates can be reasonably so derived from the items in this Contract will be final and binding on the Contractor.

(ii) If the rates for the altered, additional or

substituted work can not be determined in the manner specified in sub-clause (i) above, then the Contractor shall, within 7 days of the date of receipt of order to carry out the work, inform the Engineer-in charge of the rate which it is his intention to charge for such class of work, supported by analysis of the rate or rates claimed, and the Engineer-in charge determine the rate or rates on the following basis.

a) Landed cost of material (other than consumables).

b) Labour cost as per the quoted rates in the schedule of labour rates as per applicable category.

c) Charges for special P&M not covered in the schedule of labour rates.

16.0 Action Where No Specification is Issued

In case of any class of work for which there is no such specification supplied by the Owner as is mentioned in the tender documents such work shall be carried out in accordance with Indian Standard Specifications and if the Indian Standard Specifications do not cover the same, the work should be carried out as per standard Engineering Practice subject to the approval of the Engineer-in-Charge.

17.0 Inspection of Works

17.1 The Contractor shall submit his detailed Quality Assurance System QA (system) to the Owner. The QA system should indicate Contractor's organisational approach for QA/QC of construction activities ranging from incoming material surveillance to finally handing over the complete system to the Owner.

The Contractor shall submit an inspection and test plan for all construction activities which will be approved by the Owner. The indicative inspection and test plan should include :-

1. Details of stages of inspection/tests by Contractor's representatives.
2. Stage inspection to be offered to the Owner for various stages Viz. review, random witness, witness,

hold etc.

3. Documentation on approved formats will be prepared by the Contractor and submitted to the Owner for re-cords/approval.

The Contractor shall also submit to the Owner his QA organisation, mentioned therein specific QA/QC activities against each inspection personnel. The Owner reserves the right to interview Contractor's inspector and reject if he is found not qualified/fit for the job he is assigned to.

17.2 The Engineer-in-Charge will have full power and authority to inspect the works at any time wherever in progress either on the site or at the Contractor's premises/workshops wherever situated, premises/workshops of any person, firm or corporation where work in connection with the Contract may be in hand or where materials are being or are to be supplied, and the Contractor shall afford or procure for the Engineer-in-Charge every facility and assistance to carry out such inspection. The Contractor shall, at all time during the usual working hours and at all other times at which reasonable notice of the intention of the Engineer- in-Charge or his representative to visit the works shall have been given to the Contractor, either himself be present to receive orders and instructions, or have a responsible agent duly accredited in writing present for the purpose. Orders given to the Contractor's agent shall be considered to have the same force as if they had been given to the Contractor himself. The Contractor shall give not less then seven days' notice in writing to the Engineer-in-Charge before covering up or otherwise placing beyond reach of inspection and measurement any work in order that the same may be inspected and measured. In the event of breach of above the same shall be uncovered at Contractor's expense for carrying out such measurement or inspection.

17.3 No material shall be dispatched from the Contractor's stores before obtaining the approval in writing of the Engineer-in-Charge.

The Contractor is to provide at all times during the progress of the work and the maintenance period proper means of access with ladders, gangways, etc. and the necessary attendance to move and adopt as directed for inspection or measurement of the works by the Engineer-in-Charge.

18.0 Assistance to the Engineer

The Contractor shall make available to the Engineer-in-Charge free of cost all necessary instruments and assistance in checking of setting out of works and in the checking of any works made by the Contractor for the purpose of setting out and taking measurements of work.

19.0 Tests for Quality of Works

19.1 All workmanship shall be of the respective kinds described in the Contract documents and in accordance with the instructions of the Engineer-in-Charge and shall be subjected from time to time to such test at Contractor's cost as the Engineer-in-Charge may direct at the place of manufacture or fabrication or on the site or at all or any such places. The Contractor shall provide assistance, instruments, labour and materials as are normally required for examining, measuring and testing any workmanship as may be selected and required by the Engineer-in- Charge.

19.2 All the tests that will be necessary in connection with the execution of the work as decided by the Engineer-in charge shall be carried out at the field testing laboratory of the Contractor. In case of non- availability of testing facility for a particular test with the Contractor the required test shall be carried out at a laboratory approved by the Owner.

19.3 If any tests are required to be carried out in connection with the work or materials or workmanship not supplied by the Contractor, such tests shall be carried out by the Contractor as per the instructions of Engineer-in-Charge and cost of such tests shall be reimbursed by the Owner.

20.0 Samples

The Contractor shall furnish to the Engineer-in-Charge for approval when requested or if required by the specifications, adequate samples of all materials and finishes to be used in the work. Such samples shall be submitted before the work is commenced and in ample time to permit test and examinations thereof. All materials furnished and finishes applied in actual work shall be fully equal to the approved samples.

21.0 Action and Compensation in Case of Bad Work

If it shall appear to the Engineer-in-Charge that any work has been executed with unsound, imperfect or unskilled workmanship, or with materials of any inferior description, or that any materials or articles provided by the Contractor for the execution of the work are unsound, or of a quality inferior to that contracted for, or otherwise not in accordance with the Contract, the Contractor shall on demand in writing from the Engineer-in-Charge or his authorised representative specifying the work, materials or articles complained of, notwithstanding that the same may have been inadvertently passed, certified and paid for, forthwith rectify or remove and reconstruct the work so specified and provide other proper and suitable materials or articles at his own charge and cost.

22.0 Possession Prior to Completion

The Engineer-in-Charge shall have the right to take possession of or use any completed or partially completed work or part of the work. Such possession or use shall not be deemed to be an acceptance of any work completed in accordance with the Contract agreement. If such prior possession or use by the Engineer-in-Charge delays the progress of work, equitable adjustment in the time of completion will be made and the Contract agreement shall be deemed to be modified accordingly.

23.0 Twelve Months Period of Liability from the

Date of Issue of Completion Certificate

23.1 The Contractor shall guarantee the installation/work for a period of 12 months from the date of issue of completion certificate. Any damage or defect that may arise or lie undiscovered at the time of issue of completion certificate, connected in any way with the equipment or materials supplied by him or in the workmanship shall be rectified or replaced by the Contractor at his own expense as deemed necessary by the Engineer-in-Charge or in default, the Engineer-in-Charge may cause the same to be made good by other workmen and deduct expenses (of which the certificate of Engineer-in-Charge shall be final from any sums that may be then or at any time thereafter, become due to the Contractor or from his Retention money or the proceeds of sale thereof, or of a sufficient portion thereof.

23.2 If the Contractor feels that any variation in work or in quality of materials or proportions would be beneficial or necessary to fulfill the guarantees called for, he shall bring this to the notice of the Engineer-in-Charge in writing.

23.3 Care of Works

From the commencement to completion of the works, the Contractor shall take full responsibility for the care for all works including all temporary works and in case any damages, loss or injury shall happen to the works or to any part thereof or to any temporary works from any cause whatsoever, shall at his own cost repair and make good the same so that at completion the work shall be in good order and in conformity in every respects with the requirements of the Contract and the Engineer-in-Charge's instructions.

23.4 Defects Prior to Taking Over

If at any time before the work is taken over, the Engineer-in-Charge shall :-

(i) Decide that any work done or materials used by the Contractor or any Sub-Contractor is defective or

not in accordance with the Contract, or that the works or any portion thereof are defective, or do not fulfil the requirements of Contract (all such matters being hereinafter, called 'Defects' in this clause), and as soon as reasonably practicable gives to the Contractor notice in writing of the said decision, specifying particulars of the defects alleged to exist or to have occurred, then the Contractor shall at his own expense and with all speed make good the defects so specified. In case Contractor shall fail to do so, the Owner may take, at the cost of the Contractor, such steps as may in all circumstances, be reasonable to make good such defects. The expenditure so incurred by the Owner will be recovered from the amount due to the Contractor. The decision of the Engineer-in-Charge with regard to the amount to be recovered from the Contractor will be final and binding on the Contractor. As soon as the works have been completed in accordance with the Contract (except in minor respects that do not affect their use for the purpose for which they are intended and except for maintenance thereof provided in clause 23.1 of General Conditions of the Contract) and have passed the tests on completion, the Engineer-in-Charge shall issue a certificate (herein after called completion certificate) in which he shall certify the date on which the works have been so completed and have passed the said tests and the Owner shall be deemed to have taken over the works on the date so certified. If the works have been divided into various groups in the Contract, the Owner shall be entitled to take over any group or groups before the other or others and thereupon the Engineer-in-Charge shall issue a completion certificate which will, however, be for such group or groups so taken over only.

23.5 Defects After Taking Over

In order that the Contractor could obtain a completion certificate he shall make good with all possible speed any defect arising from the defective materials supplied by the Contractor or workmanship or any act or omission of the Contract or that may have been noticed or developed, after the works or group of the works has

been taken over, the period allowed for carrying out such work will be normally one month. If any defect be not remedied within a reasonable time, the Owner may proceed to do the work at Contractor's risk and expense and deduct from the final bill such amount as may be decided by the Owner.
If by reason of any default on the part of the Contractor a completion certificate has not been issued in respect of every portion of the works within one month after the date fixed by the Contract for the completion of the works, the Owner shall be at liberty to use the works or any portion thereof in respect of which a completion certificate has not been issued, provided that the works or the portion thereof so used as aforesaid shall be afforded reasonable opportunity for completing these works for the issue of completion certificate.

SECTION V

CERTIFICATES AND PAYMENTS

1.0 Schedule of Rates and Payments
1.1 Contractor's Remuneration
The price to be paid by Owner to the Contractor for the whole of the work to be done and for the performance of all the obligations undertaken by the Contractor under the contract documents shall be ascertained by application of respective schedule of rates (the inclusive nature of which is more particularly defined by way of application but not of limitation, with the succeeding sub-clause of this clause) and payment to be made accordingly for the work actually executed and approved by the Engineer-in-Charge. The sum so ascertained shall (excepting only as and to the extent expressly provided herein) constitute the sole and inclusive remuneration of the Contractor under the contract and no further or other payment whatsoever shall be or become due or payable to

the Contractor under the contract.

1.2 Schedule of Rates to be Inclusive
The prices/rates mentioned in the contract shall remain firm till the issue of final certificate and shall not be subject to escalation. Schedule of rates shall be deemed to include and cover all costs, expenses and liabilities of every description and all risks of every kind to be taken in executing, completing and handing over the work to the Owner by the Contractor. The Contractor shall be deemed to have known the nature, scope, design, type magnitude and the extent of the works and materials required though the contract document may not fully and precisely furnish them. He shall make such provision in the schedule of rates as he may consider necessary to cover the cost of such items of work and materials as may be reasonable and necessary to complete the works. The opinion of the Engineer-in-Charge as to the items of work which are necessary and reasonable for comple-tion of work shall be final and binding on the Contractor, although the same may not be shown on or described specifically in contract documents.
Generality of this present provision shall not be deemed to cut down or limited in any way because in certain cases it may and in other cases it may not be expressly stated that the Contractor shall do or perform a work or supply articles or perform services at his own cost or without addition of payment or without extra charge or words to the same effect or that it may be stated or not stated that the same are included in and covered by the schedule of rates.

1.3 Schedule of Rates to Cover Constructional Plant, Materials, Labour etc.
Without in any way limiting the provisions of the preceding sub-clause the schedule of rates shall be deemed to include and cover the cost of all constructional plant, temporary work (except as provided for herein), pumps, materials, labour, insurance, fuel, stores, and appliances to be supplied by the Contractor and all other matters in connection

with each item in the schedule of rates and the execution of the works or any portion thereof finished, complete in every respect and maintained as shown or described in the contract documents or as may be ordered in writing during the continuance of the contract.

1.4 Schedule of Rates to Cover Royalties, Rents and Claims

The schedule of rates shall be deemed to include and cover the cost of all royalties and fees for the articles, and processes, protected by laters, patent or otherwise incorporated in or used in connection with the works, also all royalties, rents and other payments in connection with obtaining materials of whatsoever kind for the works and shall include an indemnity to the Owner which the Contractor hereby gives against all actions, proceedings, claims, damages, costs and expenses arising from the incorporation in or use on the works of any such articles, processes or materials. Octroi or other municipal or local Board Charges if levied on materials, equipment or machineries to be brought to site for use on work shall be borne and paid by the Contractor.

2.0 Procedure for Measurement/Billing of Work in Progress

2.1 Measurements

All measurements shall be in metric system. All the works in progress will be jointly measured by the representative of the Engineer-in-Charge and the Contractor's authorised agent progressively. Such measurement will get recorded in the measurement sheets by the Contractor or his authorised representative and signed in token of acceptance by the Engineer-in-Charge or his authorised representative.

2.2 Billing

The Contractor shall submit on or before the expiry of the 1st week of the following month Proforma Running Bill of the last month in the format provided by Owner, in triplicate, to the Engineer-in-Charge of the work giving abstract and detailed measurements for the various items of work executed during the month.
The Contractor shall prepare final Running Account Bill based on the certified measurements and summary sheets and submit the same along with the enclosures mentioned herein to the person designated by the Owner.
The Owner shall effect payment on the 21st day from the date of receipt of final Running Account Bill provided the same is complete in all respects.
The number of payments to be made to the Contractor shall be restricted to one in each month.

2.3 Dispute in Mode of Measurement
In case of any dispute as to the mode of measurement not covered by the contract to be adopted for any item of work, the mode of measurement as per latest Indian Standard Specifications shall be followed.

3.0 Lump Sums in Tender

For the item in tender where it includes lump-sum in respect of parts of work, the Contractor shall be entitled to payment in respect of the items at the same rates as are payable under this contract for such items, or if the part of the work in question is not, in the opinion of the Engineer-in-Charge capable of measurement or determination, the Owner may at his discretion pay the lump-sum amount entered in the tender or a percentage thereof and the certificate in writing of the Engineer-in-Charge shall be mutually agreed upon.

4.0 Payments Running Account to be Regarded as Advances
All running account payments shall be regarded as payments by way of advance against the final payment only and not as payments for work actually done and

completed and shall not preclude the enquiring of bad, unsound and imperfect or unskilled work to be removed and taken away and reconstructed or re-erected or be considered as an admission of the due performance of the contract, or any part thereof, in this respect, or of the accruing of any claim by the Contractor, nor shall it conclude, determine or affect in any way the powers of the Owner under these conditions or any of them as to the final settlement and adjustments of the accounts or otherwise, or in any other way vary or affect the contract. The final bill shall be submitted by the Contractor within maximum three months from the date of physical completion of the work, otherwise, the Engineer-in- Charge's certificate of the measurement and of total amount payable for the work accordingly shall be final and binding on all parties.

5.0 Payment of Contractor's Bill
No payment shall be made for works estimated to cost less than Rs. 50000/- till the whole of the work shall have been completed and a certificate of completion given. But in case of works estimated to cost more than Rs.50000/-, the Contractor on submitting the bill thereof be entitled to receive a monthly payment proportionate to the part thereof approved and passed by the Engineer-in-Charge, whose certificate of such approval and passing of the sum so payable shall be final and conclusive against the Contractor. This payment will be made after making necessary deductions as stipulated elsewhere in the contract document for materials, retention money etc.
Payment due to the Contractor shall be made by the Owner if so directed by the Owner by Crossed Account Payee Cheque forwarding the same to registered office or the notified office of the Contractor. In no case will Owner be responsible if the cheque is mislaid or misappropriated by unauthorised person, persons. In all cases, the Contractor shall present his bill duly pre-receipted on proper revenue stamp.
All payments shall be made in Indian currency.

6.0 Receipt for Payment

Receipt for payment made on account of work when executed by a firm, must be signed by person holding due power of attorney in this respect on behalf of the Contractor, except when the Contractor's are described in their tender as a limited company in which case the receipts must be signed in the name of the company by a person having authorised by the resolution of the Board of Director of the company to give effectual receipt for the company. Payment shall be made though E-payment/RTGS mode only. Contractor to inform their bank account details duly certified by authorized representative of Contractor Company as per the procedure and formats which shall be provided by Owner's accounts department.

7.0 Completion Certificate

7.1 Application for Completion Certificate

When the Contractor fulfills his obligation under clause 23.4 of Section IV he shall be eligible to apply for the completion certificate. The Contractor may apply for separate completion certificate in respect of each such portion of the work by submitting the completion documents alongwith such application for completion certificate.

The Engineer-in-Charge shall normally issue to the Contractor the completion certificate within one month after receiving an application therefore from the Contractor after verifying from the completion documents and satisfying himself that the work has been completed in accordance with and as set out in the construction and erection drawings, and the contract documents.

The Contractor, after obtaining the completion certificate, is eligible to present the final bill for the work executed by him under the terms of contract.

7.2 Completion Certificate

Within one month of the completion of the work in all respects, the Contractor shall be furnished with a certificate by the Engineer-in-Charge of such completion, but no certificate shall be given nor shall the work be deemed to have been executed until all

scaffolding, surplus materials and rubbish is cleaned off the site completely nor until the work shall have been measured by the Engineer-in-Charge whose measurement shall be binding and conclusive. The work will not be considered as complete and taken over by the Owner, until all the temporary works, labour and staff colonies etc., constructed, are removed and the worksite cleaned to the satisfaction of the Engineer-in-Charge.
If the Contractor shall fail to comply with the requirements of this clause on or before the date fixed for the completion of the work, the Owner may at the expenses/cost of the Contractor remove such scaffolding, surplus materials and rubbish and dispose of the same as he thinks fit and clean off such dirt as aforesaid, and the Contractor shall forthwith pay the amount of all expenses so incurred and shall have no claim in respect of any such scaffolding or surplus materials as aforesaid except for any sum actually realised by the sale thereof.

7.3 Completion Certificate Documents

For the purpose of clause 8.0 the following documents will be deemed to form the completion documents :

(i) The technical documents according to which the work was carried out.

(ii) Three sets of construction drawings showing therein the modification and corrections made during the course of execution signed by the Engineer-in-Charge.

(iii) Completion certificate for 'embedded' and 'covered' up works.

(iv) Certificates of final levels as set out for various works.

(v) Certificates of tests performed for various works.

(vi) Certificate of compliance with Statues, laws, rules, orders prevailing from time to time during construction period and applicable to the Contractor.

(vii) Certificate for recoveries/deduction from

Engineer-in-Charge.

8.0 Final Decision and Final Certificate
Upon expiry of the period of liability and subject to the Engineer-in-Charge being satisfied that the works have been duly maintained by the Contractor during monsoon or such period as herein- before provided in clause 23 of Section IV and that the Contractor has in all respect duly made up any subsidence and performed all his obligations under the contract, the Engineer-in-Charge shall (Without prejudice to the rights of the Owner to retain the provisions of relevant clause hereof) otherwise give a certificate herein referred to as the final certificate to that effect and the Contractor shall not be considered to have fulfilled the whole of his obligations under the contract until Final Certificate shall have been given by the Engineer-in-Charge notwithstanding any previous entry upon the work and taking possession, working or using of the same or any part thereof by the Owner.

9.0 Certificate and Payments no Evidence of Completion
Except the final certificate, no other certificates or payments against a certificate or on general account shall be taken to be an admission by the Owner of the due performance of the contract or any part thereof or of occupancy or validity of any claim by the Contractor.

SECTION VI

TAXES AND INSURANCE

1.0 Taxes, Duties, etc.
The Contractor agrees to and does hereby accept full and exclusive liability for the payment of any and all taxes, duties, etc. now or hereafter imposed, increased, or modified from time to time in respect of

works and materials and all contributions and taxes for unemployment compensation, insurance and old age pensions or annuities now or hereafter imposed by any Central or State Governmental authorities or local authorities or any other body which are imposed with respect to or covered by the wages, salaries, or other compensations paid to the persons employed by the Contractor and the Contractor shall be responsible for the compliance with all obligations and restrictions imposed by the Labour Laws or any other law affecting employer-employee relationship and the Contractor further agrees to comply, and to secure the compliance of all sub-contractor's, with all applicable Central, State, Municipal and local laws and regulations and requirements of any Central, State or Local Government agency or authority. Contractor further agrees to defend, indemnify and hold harmless from any liability or penalty which may be imposed by the Central, State or Local authorities by reason of any violation by Contractor or Sub-Contractor of such laws, regulations or requirements and also from all claims, suits or proceedings that may be brought against the Owner or Construction Manager arising under, growing out of, or by reason of the work provided for by this contract, by third parties, or by Central or State Government or local authority or any administrative sub- division thereof

2.0 Insurance
Contractor shall be responsible for all insurance required for satisfactory performance of the work and statutory compliances
except CAR Policy which shall be in the scope of OWNER. Prior to commencement of Work, Contractor shall submit WCP
policy or proof of policy to the Owner and all the insurance policies shall be valid throughout the period of Contract.
It is clarified that CONTRACTOR shall take adequate and appropriate insurance coverage for its Plant and Equipment,
Staff, Labour, Material, Third Party,so as to meet its

liability under the Contract and all Statutory Regulations.
Contractor shall at his own expense carry and maintain insurance with reputable insurance companies to the satisfaction of the Owner as follows :-

2.1 Workman's Compensation and Employer's Liability Insurance
.
Till the Employees State Insurance Act is made applicable by the competent authority to the area of the establishment, the contractor shall insure all of his workman under the Workmen Compensation Act by way by taking an Insurance Policy to cover himself against all claims and shall extend the accident Insurance benefit to the injured workman / deceased workman's legal heir within the specified time. The contractor shall ensure payment of compensation in case of accidental injury in accordance with the provisions of Act.

The contractor shall submit a copy of the Insurance Policy to the Company and keep it renewed from time to time during the contract period.

While making such payment through Insurance Policy, contractor shall not recover any amount given / spent by him for the concerned workman for any reason whatsoever, except any compensation if paid during treatment or an amount paid ed by the company prior to receipt of the Insurance claim.

The contractor shall submit accident report in Form No. I to the Engineer-in-charge immediately and to the HR Dept. within 24 hrs. in case of fatal accident and within 2 days in case of non-fatal accident.

2.2 Any other Insurance Required Under Law or Regulations or by Owner
Contractor shall also carry and maintain any and all other insurance which he may be required under any law

or regulation from time to time. He shall also carry and maintain any other insurance which may be required by the Owner.

2.3 Contractor hereby releases and shall indemnify, defend and hold Owner and its subsidiaries and Affiliates and the officers, agents, employees, successors and assigns and authorized representatives of each of the foregoing ("Owner Indemnified Parties") harmless from and against any and all suits, actions, legal or administrative proceedings, claims, demands, damages, liabilities, interest, attorney's fees, costs, expenses, and losses of whatsoever kind or nature in connection incurred or suffered by any Owner Indemnified Party, whether arising before or after completion of the Work hereunder and in any manner directly or indirectly caused, occasioned, or contributed to in whole or in part, or claimed to be caused, occasioned or contributed to in whole or in part, by reason of any act, omission, fault or negligence whether active or passive of Contractor, its lower-tier suppliers, subcontractors ,employees or of anyone acting under its direction or control or on its behalf.

2.4 The foregoing shall include, but is not limited to, indemnity for:
i.) property damage or injury to or death of any person, including personnel of Owner or Contractor.
ii.) breach by Contractor of any of its representations, warranties, covenants, or guarantees under this Contract.
iii.) Contractor shall pay to Owner, all such amounts, which are expended or incurred by Owner up to the final adjudication, if Owner opts for or is required to defend itself at law against such claims for failure of the Contractor.
2.7 Contractor shall hold harmless and indemnify the Owner Indemnified Parties from and against:
i.) any liability, loss or expense arising by reason of claiming by governmental authorities or others for any failure by Contractor, its subsidiaries, affiliates or

lower tier subcontractors or any of their respective officers, directors, employees, or agents to comply with any Applicable Law; and

ii.) Any liability, loss or expense arising by reason of any claims, losses, costs, damages, and expenses in respect to any pollutants and waste matter from Contractor property causing pollution or contamination arising out of or in connection with this Contract.

2.8 Owner shall hold harmless and indemnify Contractor from and against any claim or liability arising in respect of: any liability, loss or expense arising by reason of any claims, notice, demand, charge, prosecution by governmental or any other authorities for any failure by Owner to comply with any Applicable Laws.

3.0 Damage to Property

3.1 Contractor shall be responsible for making good to the satisfaction of the Owner any loss of and any damage to all structures and properties belonging to the Owner or being executed or procured or being procured by the Owner or of other agencies within the premises of all the work of the Owner, if such loss or damage is due to fault and/or the negligence or willful acts or omission of the Contractor, his employees, agents, representatives or sub- contractors.

3.2 The Contractor shall indemnify and keep the Owner and Construction Manager harmless of all claims for damage to property other than Owner's property arising under or by reason of this agreement if such claims result from the fault and/or negligence or willful acts or omissions of the Contractor, his employees, agents, representative or sub-contractor's.

SECTION VII

LABOUR LAWS AND SAFETY REGULATIONS

1.0 Labour Laws
1.1 No labour below the age of eighteen years shall be employed on the work.
1.2 The Contractor shall not pay less than what is provided under law from time to time to labourers engaged by him on the work.
1.3 The Contractor shall at his expense comply with all labour laws and keep the Owner indemnified in respect thereof.

2.0 Implementation of Apprentices Act 1961
The Contractor shall comply with the provision of the Apprentices Act 1961 and the Rules and orders issued thereunder from time to time. If he fails to do so, his failure will be a breach of the contract and the Engineer- in-Charge may, at his discretion, cancel the contract. The Contractor shall also be liable for any pecuniary liability arising on account of any violation by him of the provision of the Act.

3.0 Contractor to Indemnify the Owner
3.1 The Contractor shall indemnify the Owner and every member, officer and employee of the Owner, also the Engineer-in-Charge and his staf against all actions, proceedings, claims demands, costs and expenses whatsoever arising out of or in connection with the matters referred to in clause 3.0 of Section VI and elsewhere and all actions, proceedings, claims, demands, costs and expenses which may be made against the Owner for or in respect of or arising out of any failure by the Contractor in the performance of his obligations under the contract documents. The Owner and Construction Manager shall not be liable for or in respect of any demand or compensation payable by law in respect or in consequence of any accident or injury to any workmen or other person in the employment of the Contractor or his Sub-Contractor and Contractor shall indemnify and keep indemnified the Owner and Construction Manager against all such damages and compensations and against all claims, damages,

proceedings, costs, charges and expenses whatsoever in respect thereof or in relation thereto.

3.2 Payment of Claims and Damages

Should the Owner have to pay any money in respect of such claims or demands as aforesaid the amount so paid and the costs incurred by the Owner shall be charged to and paid by the Contractor and the Contractor shall not be at liberty to dispute or question the right of the Owner to make such payments notwithstanding the same may have been made without his consent or authority or in law or otherwise to the contrary.

3.3 In every case in which by virtue of the provisions of section 12, Sub-Section (i) of workmen's compensation act, 1923 or other applicable provision of Workmen's Compensation Act, 1923 or any other Act, the Owner is obliged to pay compensation to a workman employed by the Contractor in execution of the works, the Owner will recover from the Contractor the amount of the compensation so paid; and without prejudice to the rights of Owner under Sub-section 2 of Section 12 of the said Act, Owner shall be at liberty to recover such amount or any part thereof by deducting it from the retention money or from any sum due to the Contractor whether under this contract or otherwise. The Owner shall not be bound to contest any claim made under Sub-section 2 of Section 12 of the said Act, except on the written request of the Contractor and upon his giving to the Owner full security for all costs for which the Owner might become liable in consequence of contesting such claim.

4.0 Health and Sanitary Arrangements for Workers

In respect of all labour directly or indirectly employed in the works for the performance of the Contractor's part of this agreement, the Contractor shall comply with or cause to be complied with all the rules and regulations of the local sanitary and other authorities or as framed by the Owner from time to time for the protection of health and sanitary arrangements

for all workers.

5.0 Safe Regulations

5.1 In respect of all labour, directly or indirectly employed in the work for the performance of Contractor's part of this agreement, the Contractor shall at his own expense arrange for all the safety provisions as per safety codes of C.P.W.D., Indian Standards Institution, The Electricity Act, The Mines Act and such other acts as applicable.

5.2 The Contractor shall observe and abide by all fire and safety regulations of the Owner, Before starting construction work Contractor shall consult with Owner's safety Engineer or Engineer-in-Charge and must make good to the satisfaction of the Owner any loss or damage due to fire to any portion of the work done or to be done under this agreement or to any of the Owner's existing property.

6.0 Indemnity

1.1 Owner shall not be responsible or liable in any manner whatsoever for any claims, suits, liabilities, costs, damages, losses and expenses incurred or suffered by Contractor (excluding those agencies specifically recommended in writing by OWNER), its agents, personnel, sub-contractors and representatives, including in respect of any injury, death, damage to or loss of its and their or any third party's personnel, employees, equipment, material or property, as the case may be, arising or resulting from, or occasioned by or in connection with any of the Work envisaged hereto, including the performance of work by the Contractor or Owner or any of their personnel, sub-contractors, employees and agents.
2.1 Contractor shall, if attributable to him, indemnify and hold harmless the Owner, its personnel and agents from and against any and all suits, claims, liabilities, costs, damages, losses and expenses (including legal fees and expenses) of every kind and

nature, during performance of this Contract, but not restricted to the following:

damage to or loss of equipment and / or property, equipment, tools, aids, materials, spares of any personnel, employee, contractor, agent of the Owner or Contractor or any third party;

environmental damage occurring at the Site or at the premises of the Contractor or pollution emanating from the property or equipment of the Contractor, its agents, Sub-contractors

to the extent they arise or result from, or are occasioned by or in connection with any of the works envisaged hereto, including the performance of work by Contractor, or any other act or omission, by the Contractor or third parties, and any of their personnel, sub-contractors, employees and agents.

3.1 Contractor shall indemnify and hold harmless the Owner against all actions, proceedings, claims demands, costs and expenses whatsoever arising out of or in connection with any breach of any applicable law by Contractor, its employees, Sub-contractors, agents, representatives, personnel or any other persons for whose action it is liable.

4.1 In the event Owner is required by a court of law to pay any amount in respect of any claims or demands as aforesaid the amount paid and costs incurred by Owner shall be reimbursed by Contractor to Owner for reasons attributable to contractor or, alternatively, be deducted by Owner from any sum due or thereafter becoming due to Contractor from Owner under the Contract, at Owner's discretion. Contractor shall not be entitled to dispute or question payments of any such amount by Owner notwithstanding such payment being made without its consent or authority.

5.1 Contractor is and shall remain solely and exclusively liable and responsible for:

6.1 supervision of work, quality of material used, method and process of working, conduct and behavior of

its employees, safety of its personnel and agents deployed by it, from time to time.

7.1 The Contractor shall indemnify the Owner and every member, officer and employee of the Owner, also the Engineer-in-Charge and his staff against all actions, proceedings, claims demands, costs and expenses whatsoever arising out of or in connection with the matters and elsewhere and all actions, proceedings, claims, demands, costs and expenses which may be made against the Owner for or in respect of or arising out of any failure by the Contractor in the performance of his obligations under the contract.

8.1 The Contractor will observe all the compliances with health, safety and environment procedures and norms prescribed by competent authorities from time to time,

9.1 If Owner is required by a court of law to pay compensation to any personnel employed and deputed by the Contractor under the provisions of the Workmen's Compensation Act, 1923, in particular under Section 12(i) thereof, Owner shall be reimbursed by Contractor such amount or, alternatively, Owner may deduct such amount from any sum due or thereafter becoming due to Contractor from Owner under the Contract including from the security deposit/retention money bank gurantee. Owner shall not be obliged to contest any claim made against it under the under Sub-section 2 of Section 12 of the Workmen's Compensation Act, 1923, except on written request by the Contractor and upon provision of full security by the Contractor for all costs which Owner may become liable to pay as a consequence of contesting such claim.

GENERAL.

a) Safety, Health and Environment.
CONTRACTOR shall comply with the provisions of General Conditions of Contract. Overall, the CONTRACTOR shall

observe all necessary safety precautions to safeguard his personnel, plant, machinery, other personnel, equipment and completed works at site. He will remain solely liable for any claims or damages arising out of non-compliance of such safety precautions and would indemnify OWNER from any such claims or damages.
Costs associated with all safety measures and safety equipments, appliances shall form part of cost.CONTRACTOR shall not import, sell, give, barter or otherwise dispose of any alcoholic liquor, or drugs, or permit or suffer any such importation, sale, gift, barter, possession or dispensation thereof by his sub-contractors, agents or employees.
CONTRACTOR shall not give, barter or otherwise dispose of to any person or persons, any arms or ammunition of any kind or permit on-site possession or dispensation thereof or tolerate the same as aforesaid by its Subcontractors or Suppliers of whatever tier.
In the event of any outbreak of illness of an epidemic nature, CONTRACTOR shall comply with and carry out such regulations, orders and requirements as may be made by the Government, or the local medical or sanitary authorities for the purpose of dealing with and overcoming the same.

b) General Terms & Conditions.

For the avoidance of doubt the following items clarify the Parties understanding, intent and agreement of the terms and conditions of the GCC;

i.) For avoidance of doubt, and contrary to the prescription in the GCCs that CONTRACTOR is responsible for meeting the cost of works, services, responsibilities, obligations and the like and by way of example but not prescription, water supply lines, power supply lines, acceleration ahead of agreed Completion date (cost requires mutual agreement between OWNER and CONTRACTOR), the arising cost and expense of such works, services, responsibilities, obligations and the like, shall be deemed to be Costs as provided for

in the agreement

ii) It is clarified that the indemnity clause mentioned in the general terms and condition is applicable only to CONTRACTOR scope of work defined in the agreement including any amendments to the said agreement in future.

c) Consequential Loss and Damage

For the sake of clarity it is agreed that neither Party shall be liable to the other for any consequential losses or loss of profit or indirect or remote losses, expenses or damages arising out of or in connection with this Agreement.

d) CONTRACTOR's Warranties - Construction

CONTRACTOR warrants to OWNER subject to OWNER's Technical Documents that upon completion of the Works and all items of Plant, Goods, Materials and things whatsoever incorporated into permanent works therein:

i) shall be fit for the purpose for which they are normally intended or where a purpose is stated in the Contract are fit for the purpose stated in the Contract;
ii) shall be of quality and standards as per OWNER's Technical Specifications;
iii) shall not contain, comprise or be made from any deleterious matter;
iv) shall be free from the Prohibited Materials [as defined below];
v) shall have been installed in compliance with the recommendations of the manufacturers of such things;
The "Prohibited Materials" are:-
i) asbestos or products containing asbestos;
ii) lead or any products containing lead including lead-based paints and primers;

iii) urea formaldehyde foam or any other material that may release formaldehyde in hazardous or irritant form;
iv) materials comprised of hazardous mineral fibres or fibres that are not sealed or stabilized to prevent migration;
v) materials in which chlorofluorocarbons, hydrochloroflurocarbons, or hexafluoroacetones have been used as a blowing agent;
vi) any other substance or matter known to be deleterious to health or safety either during construction of the Works or when the Works are in use or which would adversely affect the functioning or life of the Works at the time of use as per codes and standards.
e) "Maintenance of other Services and Structures"
CONTRACTOR shall ascertain the location of all watercourses, sewers, drains, gas pipes, water pipes, electricity and telecommunication cables, other services and structures which may be encountered during construction of the Works and not mentioned in the Contract. He shall temporarily support or divert and subsequently reinstate all such services and structures as necessary to the satisfaction of the Engineer.
As soon as any service or structure is encountered on, over, under, in or through the Site during the performance of the Contract, CONTRACTOR shall make record of the location and description of such service or structure and shall send the same forthwith to the Engineer.
Where permanent diversion or support of such service or structure is rendered necessary as the unavoidable result of the construction of the Works in accordance with the Contract, the Engineer after consultation with OWNER will instruct CONTRACTOR as to the diversion or support to be provided and CONTRACTOR shall be paid the monies.
f) "Spoil Dumps"
CONTRACTOR shall not deposit excavated material on land in Government or private except where directed by the Engineer in writing or by leave in writing of the authority responsible for such land in Government or

of the OWNER or responsible representative of the OWNER of such land in private and only then in those places and under such conditions as the authority, OWNER or responsible representative may prescribe.
g) "Confidentiality "

"Confidential Information" shall mean all Documentation and other technical or commercial information in any form obtained directly or indirectly from OWNER or the Engineer by CONTRACTOR, or from CONTRACTOR by OWNER or the Engineer, or which is generated by CONTRACTOR or any Subcontractor in connection with the Contract, other than information:
(a) which is or becomes publicly available other than by any unauthorized actions of either of the Parties to the Contract;
(b) which is or comes into the possession of one Party other than in breach of a duty of confidence to the other Party; or
(c) Which is expressly approved for disclosure by the Party to whom the information relates.

CONTRACTOR shall not, without the previous written consent of OWNER, use, publish or disclose to any person, nor cause nor permit any of his Affiliates, employees, agents or Subcontractors or the employees or agents of those Subcontractors to use, publish or disclose any Confidential Information obtained from OWNER or the Engineer otherwise than for the performance of his duties under the Contract. If required by OWNER, CONTRACTOR shall cause any person to whom Confidential Information has been or intended to be disclosed to enter into an individual written obligation to OWNER to comply with this Sub-clause.

"Documentation" shall include any document in paper or electronic form, including drawings, technical software, images, manuals or records and

"Affiliate" shall mean any company which is directly or indirectly controlled by either Party or its ultimate parent, where control is signified either by having effective control of the appointment of a majority of a company's board of directors or by the beneficial ownership of more than half of the nominal

value of its equity share capital.

CONTRACTOR shall not, other than for the purposes of performing the Works, take or permit to be taken any photograph or other image of the whole or any part of the Works or any other property of OWNER, or any physical or virtual model of it, without the prior written consent of OWNER or the Engineer. Any such photograph or other image shall be regarded as Confidential Information No photograph or other image so taken shall be used for the purposes of publicity without the prior written consent of OWNER.

These clauses shall survive and remain in full force following the completion of the Works and/or the termination of the Contract for a period of two years. The above clause will not apply for any disclosure made under compulsion of law due to a written directive from any government authority. In such cases CONTRACTOR & OWNER shall jointly review and take appropriate decision

.

h) "Priority of Documents"

The following are in the decreasing order of priority.

a. Work Order & Alteration Order which shall be consistent with the Contract Agreement and mutually agreed changes if any.
b. Contract Agreement including the annexures to Contract Agreement
c. Scope of work and technical specifications
d. The Special Terms and conditions of contract
e. The General Conditions of contract
f. Drawings and specifications
g. Contract schedules

i) "Adjustments for changes in cost"

Applicable and accordingly the total Prime Cost is subject to adjustment

j) Other Contractors

CONTRACTOR shall co-operate with other contractors /

vendors / agencies of OWNER executing work at the site.

k) Mode of Measurements

Measurement of work will be made on UOM (Unit of Measurement) mentioned in the SOR (Schedule of Rates) and as per specification.
CONTRACTOR shall ensure that the measurements for all works that may be partially or wholly hidden in course of construction are duly recorded jointly with OWNER representative before the portion of the work becomes inaccessible for measurements.
All measurement, methods of measurement, meaning and intent of specifications and interpretation of special conditions of contract given and made by EIC shall be final and binding on CONTRACTOR.
The payment for any completed work shall be on the basis of the joint measurements as certified by the OWNER's project in charge. For any dispute in the mode of measurements, mode of measurement as per the latest Indian Standard Specifications shall be referred.

l) Quality Assurance & Control

CONTRACTOR shall submit his QA plan, orgonogram and Quality control procedure before the start of work.
CONTRACTOR shall also nominate one qualified engineer for QA/QC function.

CONTRACTOR shall generate inspection report in the prescribed format and shall obtain stage wise clearance from the Engineer In Charge.

CONTRACTOR shall also submit ITP#S as per the job requirement.

For violation of QA/QC requirement, penalty shall be imposed by the EIC as deemed fit by him.

CONTRACTOR shall carry out relevant test as per IS specification on Building materials/concrete

If any defect is noticed during the defect liability period, OWNER will issue notice to CONTRACTOR to attend. After 14days of such notice, if CONTRACTOR does not start the rectification work to the satisfaction of OWNER. The work shall be carried out by OWNER and cost shall be debited to CONTRACTOR.

m) Security

CONTRACTOR shall be solely responsible for security of its materials, men, equipment at site and other locations associated with the performance of the work till issuance of compliance certificate.

SECTION VIII

SAFETY CODE

1. Contractor shall also follow the following safety precaution in addition to the safety precaution given in the General Conditions of Contract.
2. The contractor will ensure safety precautions in all stretches of the alignment that are parallel to the existing road where vehicular movements are frequent and in close proximity of the existing structures and other installations.Necessary measures have to be taken to ensure proper protection of the adjoining road and traffic on the road.
3. For works close to the road, structures, sheds, etc. all precautions will have to be taken for ensuring that during execution of the work, no damage is caused to the road, structures, sheds, etc., or it's ancillaries and also no obstruction is caused to the movement of the materials, vehicles or men.
4. The Contractor will also ensure that no damage is done to the drainage system and any other services /

structures. Adequate measures have to be taken so as to allow free flow of water at Bridges and culverts.
5. OWNER shall provide all the details and drawing of underground utilities. Contractor shall observe due care to avoid damage to the "Existing underground utilities/ services of all types" while executing the work. However, in case of any damages caused due to negligence of the contractor, sub-contractor or for any reason whatsoever, the contractor shall make good the damages to the satisfaction of the owner at his own cost.
6. The contractor shall clear the debris at the sites after the completion of work or as per the requirement of EIC.
7. Contractor to wear safety helmet, safety belt whenever and wherever required as per the instruction of Engineer in charge.
8. Overall ,the contractor shall observe all necessary safety precautions to safeguard his personnel, plant, machinery, other personnel, equipment and completed works at site. He will remain solely liable for any claims or damages arising out of non-compliance of such safety precautions and would indemnify the owner from any such claims or damages.

SECTION - IX

STATUTORY OBLIGATIONS

1.0 GOVERNMENT REGULATIONS:
1.1 The Contractor shall comply and ensure strict compliance by his employees and agents of all applicable Central, State, Municipal and Local Laws and Regulations and undertake to indemnify Owner from and against all levies, damages, penalties and payments whatsoever as may be imposed by reason of any breach or violation of any law, rule, including but not limited to the claims against Owner Industries Limited, under Workmen Compensation Act 1923, the Employees Provident

Fund Act 1952, The Contract Labour (Abolition and Regulation) Act 1970, Factories Act 1948, Minimum Wages Act and Regulations, Building and Construction act 1996 etc., and any Labour Laws which would be amended/modified or any new act if it comes in force whatsoever, and all actions claim and demand arising therefrom and/or related thereto.

2.0 LABOUR LAWS AND REGULATIONS:

2.1 The Contractor shall ensure to keep and maintain all the statutory registers, records as required under provisions of Contract Labour (R & A) Act, 1970, Minimum Wages Act and the rules made thereunder, Employees Provident Fund Act, 1952 and keep the same available at the work site for inspection by Company's representatives, and Government Authorities.

2.2 The Contractor shall ensure that the employees employed by him are paid in accordance with Minimum Wage rates applicable and any changes in statutory wage rates and relevant special allowances are promptly implemented.

2.3 The Contractor shall ensure that the employee employed will be covered under provisions of EPF Act and Regulations.

2.4 The Contractor therefore will ensure that necessary contribution towards PF are deposited with the authorities concerned and the Contractor will maintain all the records as per provisions of EPF Act. If the Contractor fails to comply with the EPF Act, 1952 he shall be exclusively responsible and liable. The Contractor shall ensure that he arranges to deposit Professional tax and other fees/amount etc. The Contractor shall ensure and carryout his work safely, as per Standard Safety, all Fire and Security regulations and shall be liable to Owner for any damages by Contractor or his workmen or agent may cause while carrying out the works and to make good the same to Owner by payments as assessed by the Owner.

2.5 Workmen employed by the Contractor will be directly supervised and controlled by the Contractor or his representatives for works, discipline and behaviour. The Contractor shall employ responsible Supervisor to be present always at the work site for ensuring proper progress of work, discipline and behaviour of his workmen and also to ensure not to damage Company's property, Building, Machinery and any installation etc. Also Contractor shall ensure that the workmen do not carry any inflammable materials like match box and film etc., in prohibited areas.

2.6 The Contractor shall be solely responsible for Safety of his workmen and to provide them adequate necessary equipments etc. and shall ensure to have all his workmen properly covered under the Standard and Registered Insurance Company Policies for any injuries, losses etc. to his workmen. Owner shall not be liable for any injury or loss of life of the Contractor's personnel. The Contractor shall ensure to provide required transport, uniform, safety shoes & safety gadgets facilities to his workmen. If the Contractor fails to supply any safety equipments etc., to his workmen he shall be solely responsible & liable at all times.

2.7 The Contractor shall ensure that the worker engaged by it are paid regularly and in no way shall Owner be responsible for the salary/emoluments or whatever dispute under the Labour Laws or other statues and rules of the State and Central Government concerning the service conditions of the workers employed by the Contractor.